

THE COMPANIES ACT 2006
PRIVATE COMPANY LIMITED BY SHARES

ARTICLES OF ASSOCIATION

of

ALPHA FINANCIAL MARKETS CONSULTING PLC

Registered No. 09965297

Incorporated in England and Wales on 2 OCTOBER 2017

Adopted by special resolution on 2 OCTOBER 2017

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CONTENTS

CONSTITUTION	1
INTERPRETATION	1
SHARE CAPITAL	1
RIGHTS ATTACHING TO THE SHARES	1
ISSUES OF SHARES	15
LIEN	18
TRANSFER OF SHARES	18
GENERAL MEETINGS	19
DIRECTORS	20
BORROWING AND OTHER POWERS	23
ALTERNATE DIRECTORS	24
INDEMNITY AND INSURANCE	25
PERMITTED TRANSFERS	26
COMPULSORY TRANSFERS	28
TRANSFER OF LEAVER SHARES	30
FAIR PRICE	31
CHANGE OF CONTROL	32
TAG-ALONG	33
CO-SALE	34
DRAG-ALONG	37
INVESTOR DIRECTOR	42

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CONSTITUTION

1. The Company is a public company within the meaning of section 4(1) of the Companies Act 2006 (the "**2006 Act**" or "**CA06**") established subject to the provisions of the 2006 Act including any statutory modification or re-enactment thereof for the time being in force and the articles contained in The Model Form Articles for private companies limited by shares as set out in The Companies (Model Articles) Regulations 2008 (Statutory Instrument 2008 No. 3229) (the "**Model Articles**") with the exception of articles 2, 14, 17 to 20 (inclusive), 22(2), 24(2)(c), 26, 38, 41, 44(1), 44(2), 52 and 53, and of any other articles which are inconsistent with the additions and modifications hereinafter set forth.
2. The liability of the members is limited to the amount, if any, unpaid on the shares held by them.
3. In accordance with the 2006 Act the objects of the Company shall be unrestricted.
4. The name of the Company may be changed by resolution of the Board (with Investor Director Consent).

INTERPRETATION

5. In these Articles, unless the context otherwise requires, words and expressions shall bear the meaning ascribed to them in Schedule Part 1 of these Articles and the Schedule comprising Parts 1 and 2 shall be part of and construed as one with these Articles.

SHARE CAPITAL

6. The issued share capital of the Company as at the date of adoption of these Articles is £50,003.357955 divided into 294,490,000 A Shares, 48,695,000 B1 Shares, 35,600,000 B2 Shares, 60,995,000 C1 Shares, 25,775,000 C2 Shares, 45,000 D Shares, 34,130,000 F Shares and 1,301,591 Preference Shares.

RIGHTS ATTACHING TO THE SHARES

7. The rights and restrictions attaching to the shares are as follows:

7.1. EQUITY SHARES

Income

- 7.1.1. Any profits which the Directors may lawfully determine to distribute in respect of any financial year shall be distributed amongst the holders of the Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares.

Capital/Exit Proceeds

- 7.1.2. The:

- (a) capital and assets of the Company on a winding-up or other return of capital available for distribution to the holders of the Equity Shares; or
- (b) proceeds of any Share Sale or of any Drag Sale (as the case may be) in respect of the shares being sold,

(in either case after the payment of any sums due in respect of the Preference Shares pursuant to clause 23 of the Investment Agreement or Article 7.3.2 or Article 7.3.3 (as the case may be)), shall be distributed/shared amongst (aa) in the case of Article 7.1.2(a) the holders of the Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares or (bb) in the case of Article 7.1.2(b), the sellers of Equity Shares (in respect of the Equity Shares which they are selling only), pro rata according to the proportion of the total number of Equity Shares being sold by all such sellers in respect of the Share Sale or Drag Sale represented by the number of Equity Shares being sold by each such seller (and on the basis that such Equity Shares rank pari passu as if they constituted a single class of shares).

Voting

- 7.1.3. Subject to Articles 7.1.4, 7.1.5 and 7.5 and to any rights or restrictions for the time being attached to any class or classes of shares:

- (a) the A Shares and the D Shares (the "Voting Ordinary Shares") shall entitle any holder thereof to receive notice of, and to attend and speak, at any general meeting and on a poll each Voting Ordinary Share shall carry one vote;
- (b) the holders of the A Shares (as a class) shall be entitled to cast 100% of the voting rights that are not capable of being cast by the holders of D Shares pursuant to paragraph (c) below and where there is more than one holder of A Shares each holder shall be entitled to cast that proportion of the voting rights capable of being cast by holders of A Shares that his holding of A Shares bears to the total number of A Shares in issue;

- (c) the holders of the D Shares (as a class) shall be entitled to cast 45% of the total number of voting rights capable of being cast by all holders of Voting Ordinary Shares and where there is more than one holder of D Shares the voting rights capable of being cast by the holders of the D Shares shall be divided equally amongst all holders of the D Shares in issue; and
- (d) the holders of each of the other Equity Shares shall be entitled to receive notice of, to attend but not speak or vote at any general meeting of the Company.

Every vote at every general meeting of the Company shall be taken by way of a poll only unless otherwise agreed by Investor Director Consent.

- 7.1.4. In relation to any resolution proposed to remove any Director appointed pursuant to Article 44, the A Shares voting on such resolution shall carry such number of votes as is required to defeat the resolution.

Other shareholder/ class consent matters

7.1.5.

- (a) In addition to any other approval required by law or these Articles, those matters set out in Part 2 of the Schedule shall require prior approval by A Shareholder Consent.
- (b) If any act or omission of the Company requires a resolution of the members in general meeting and/or any class consent of the B1, B2, C1, C2, D (provided always that the provisions of this Article 7.1.5(b) shall only apply in relation to the D Shares in the event that Article 7.1.6(b) applies), F, Preference and/or Deferred Shares in terms of the 2006 Act (the "Action"), the following provisions shall apply:
 - (i) If the Action requires approval under clause 8.5 of the Investment Agreement and such approval is obtained, each holder of Equity Shares (other than A Shares), Deferred Shares and/or Preference Shares shall be deemed to have appointed as his attorney and agent any person nominated by the members representing A Shareholder Consent which person shall have the sole power and authority to exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him in his name and on his behalf in order to approve and implement the Action.

- (ii) If the Action does not require approval under clause 8.5 of the Investment Agreement, each holder of Equity Shares (other than A Shares), Deferred Shares and/or Preference Shares shall be deemed to have appointed as his attorney and agent any person nominated by the members representing A Shareholder Consent which person shall have the sole power and authority to exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him in his name and on his behalf in order to approve and implement the Action.

7.1.6.

- (a) The only acts or omissions of the Company which will require a class consent of the D Shares shall be as set out in Schedule Part 7D (Part A) of the Investment Agreement, and such class consent of the D Shares may be given by the holders of a majority of the D Shares then in issue (excluding any D Shares in which any Leaver and/or any Permitted Transferee of any such Leaver holds any interest or to which Article 7.5 applies).
- (b) If Leavers and/or Permitted Transferees of any Leaver hold interests in all of the D Shares or if Article 7.5 applies to all of the D Shares, Article 7.1.6(a) shall not apply and instead Article 7.1.5(b) shall apply in respect of the D Shares.

7.2. REDEEMABLE DEFERRED SHARES

Income

- 7.2.1. No dividend may be paid in respect of any Redeemable Deferred Share.

Capital/Exit Proceeds

- 7.2.2. The holders of Redeemable Deferred Shares shall not be entitled to receive, on a return of capital on liquidation or otherwise, the surplus assets of the Company remaining after payment of its liabilities.

Voting

- 7.2.3. Redeemable Deferred Shares shall not entitle the holder thereof to attend or vote at any general meeting of the Company.

Redemption of Redeemable Deferred Shares

- 7.2.4. Subject to the 2006 Act and of every other statute for the time being in force concerning companies and affecting the Company, the

Company shall have the right at any time to redeem the whole or any number of the Redeemable Deferred Shares in issue.

- 7.2.5. The Company shall pay in respect of each Redeemable Deferred Share redeemed the nominal value of the Redeemable Deferred Share.
- 7.2.6. On the due date, the Company shall pay to each registered holder of Redeemable Deferred Shares the amount payable in respect of such redemption. On receipt of that amount, each such holder shall surrender to the Company the certificate for the shares that are to be redeemed (or an indemnity in a form reasonably satisfactory to the Board in respect of any lost share certificate) to be cancelled. If any certificate (or indemnity) so surrendered includes any shares that are not redeemable at that time, the Company shall issue a new share certificate for the balance of the shares not redeemable to the holder. If there is more than one holder of Redeemable Deferred Shares, any redemption shall be made among such holders pro rata (as nearly as possible) to their respective holdings of Redeemable Deferred Shares.

7.3. PREFERENCE SHARES

Income

- 7.3.1. No dividend may be paid in respect of any Preference Share.

Capital/Exit Proceeds

- 7.3.2. Other than in the event that clause 23 of the Investment Agreement applies, in a winding-up of the Company from the assets of the Company available to the holders of shares the holders of Preference Shares (in respect of their Preference Shares only) shall (subject always to Article 7.3.11) receive in priority to any payment in respect of any other share an amount per Preference Share equal to (i) £1 (the "**Principal Value**") plus (ii) a sum equal to 8% per annum which shall be deemed to accrue on the Outstanding Value (as defined below) from day to day on the basis of a 365 day year (or a 366 day year in the case of a leap year) from the date of issue of the Preference Share until the earliest of (and including) the date of redemption of the relevant Preference Share and the date of winding-up of the Company. The Premium (if any) which has accrued as at each anniversary of the Investment Date will be compounded with the Principal Value outstanding immediately following such anniversary (and such Principal Value plus any such compounded sums from time to time shall be the "**Outstanding Value**"). The total sum calculated under (ii) (including any compounded sums (but excluding the Principal Value)) shall be deemed to be the "**Premium**" for the purpose of these Articles. Upon payment of the amounts referred to in this Article 7.3.2 the Preference Shares shall not be entitled to any further amount of capital or distribution. If the assets of the Company available to shareholders are less than the amount which would be due to all Preference Shares under the foregoing provisions of this Article 7.3.2

(the "**Preference Proceeds**"), those Preference Proceeds will be distributed in accordance with clause 23 of the Investment Agreement.

- 7.3.3. In the event of a Share Sale or a Drag Sale (other than in the event that clause 23 of Investment Agreement applies), the holders of Preference Shares (in respect only of the Preference Shares which they are selling) shall (subject always to Article 7.3.11) receive from the proceeds of the Share Sale or the Drag Sale available in respect of the shares being sold in priority to any other share an amount per Preference Share equal to the Principal Value plus the Premium (to be calculated up to (and including) the date of completion of the Share Sale or Drag Sale) and shall not be entitled to any further participation in the proceeds of the Share Sale or the Drag Sale. If the proceeds of the Share Sale or the Drag Sale available in respect of the share being sold are less than the amount which would be due under the foregoing provisions of this Article 7.3.3 in respect of the Preference Shares which are being sold (the "**Preference Proceeds**"), those Preference Proceeds will be distributed in accordance with clause 23 of the Investment Agreement. For the avoidance of any doubt, subject always to Article 7.3.11, the only value which a Preference Share shall be entitled to upon its realisation shall be (and shall not exceed) the amount determined and payable in accordance with and pursuant to the foregoing provisions of this Article 7.3.3 or Articles 7.3.6-7.3.10 or Article 40 or Articles 41.3-41.4 or Articles 42.4-42.6 or Articles 43.7-43.11.
- 7.3.4. Subject to clause 23 of the Investment Agreement (if applicable), as between the holders of Preference Shares, the assets or proceeds due to them under Article 7.3.2 or 7.3.3 (as the case may be) shall be allocated across all of the relevant Preference Shares *pari passu* and *pro rata* to the number of Preference Shares held by each holder.

Voting

- 7.3.5. Preference Shares shall not entitle the holder thereof to attend or vote at any general meeting of the Company.

Redemption of Preference Shares

- 7.3.6. Subject to the 2006 Act and of every other statute for the time being in force concerning companies and affecting the Company, the Relevant Preference Shares shall be redeemed in full on the Loan Note Repayment Date by the Company giving notice of the redemption to the relevant holder(s) of Preference Shares (the "**Redemption Notice**"). Those shares shall be redeemed immediately following the issue of the Redemption Notice(s) by the Company (the "**Redemption Date**").
- 7.3.7. On the Redemption Date, subject always to Article 7.3.11, the Company shall pay in respect of each Relevant Preference Share the Principal Value plus the Premium (to be calculated up to (and including) the Redemption Date).

- 7.3.8. On any Redemption Date the Company shall pay to each registered holder of Relevant Preference Shares the amount payable in respect of such redemption. On receipt of that amount, each such holder shall surrender to the Company the certificate for the shares that are to be redeemed (or an indemnity in a form reasonably satisfactory to the Board in respect of any lost share certificate) to be cancelled. If any certificate (or indemnity) so surrendered includes any shares that are not redeemable at that time, the Company shall issue a new share certificate for the balance of the shares not redeemable to the holder. If there is more than one holder of Relevant Preference Shares, any redemption shall be made among such holders pro rata (as nearly as possible) to their respective holdings of Preference Shares.
- 7.3.9. If, on any Redemption Date, the Company is prohibited from redeeming some or all of the Relevant Preference Shares then due to be redeemed, the Company shall redeem such number of Relevant Preference Shares as it is lawfully able to redeem. If there is more than one holder whose Preference Shares are due to be redeemed, those Relevant Preference Shares shall be redeemed in proportion as nearly as possible to their existing holdings of Preference Shares and the Company shall redeem the balance of those shares as soon as practicable.
- 7.3.10. For so long as the Company is prohibited from redeeming Relevant Preference Shares, and some or all of the Relevant Preference Shares have not been redeemed, the Premium thereon (other than in respect of any Preference Shares to which the definition of Preference Share Leaver Date apply) shall continue to accrue down to and including the date on which such shares are actually redeemed. If the Company fails to make any partial redemption of Relevant Preference Shares, then subsequent redemptions of Preference Shares shall be deemed to be of those Preference Shares that first became due for redemption.

Preference Shares held by or on behalf of a Leaver

- 7.3.11. Unless otherwise agreed by the Remuneration Committee, the following provisions shall apply upon the Termination Date in respect of any Bad Leaver or Very Bad Leaver (but for the avoidance of any doubt the Preference Shares held by a Good Leaver or to which a Good Leaver is entitled shall not be affected by the following provisions of this Article 7.3.11):
- (a) if a Preference Share Leaver Date has arisen as a result of the relevant person being a Very Bad Leaver, the Preference Shares which are the subject of any such event as determined within the definition of Preference Share Leaver Date shall cease to be entitled to any of the accrued or future rights set out in these Articles (including without limitation any Premium or any of the accrued or future rights in respect of capital/ exit proceeds or redemption set out above) and those Preference Shares shall automatically (and without any need

for approval from any shareholder) convert on a one for one basis into Deferred Shares immediately upon notice to that effect being served on the Company by an Investor Director or by the holders of the majority of the A Shares;

- (b) if a Preference Share Leaver Date arises as a result of the relevant person being a Bad Leaver, the Preference Shares which are the subject of any such event as determined in accordance with the definition of Preference Share Leaver Date shall cease to be entitled to any accrued or future amount of Premium and (subject to a Bad Leaver not being a Very Bad Leaver in which case Article 7.3.11(a) shall apply) the amount per Preference Share due in respect of such Preference Shares in terms of Articles 7.3.2, 7.3.3 or upon redemption of any such Preference Share shall be restricted to £1 per Preference Share.

For the avoidance of any doubt the Preference Shares held by a Bad Leaver or a Good Leaver shall not be subject to compulsory transfer under Article 37.

7.3.12. Any deferred shares arising under Article 7.3.11(a) shall have the rights and are subject to the restrictions set out below, namely:

- (a) no right to participate in or receive any dividends declared, made or paid by the Company;
- (b) no right to receive notice of or attend or vote at any general or class meeting (other than a class meeting of the Deferred Shares) of the Company;
- (c) A Shareholder Consent shall be required for any transfer of Deferred Shares;
- (d) the right on a return of assets in a winding-up to a repayment of the capital paid up on such shares after the rights of all holders of Equity Shares have been discharged in full and a sum of £100,000 has been paid in respect of each issued Equity Share in the capital of the Company, but no other right to participate in the assets of the Company; and
- (e) the holders of the majority of the A Shares shall have irrevocable authority at any time to appoint any person to execute on behalf of the holders of the deferred shares a transfer thereof and/or an agreement to transfer the same, without making any payment to the holders thereof, to such person as the holders of the majority of the A Shares may determine as custodian thereof and to cancel and/or purchase the same (in accordance with the provisions of statute) without making any payment to or obtaining the sanction of the holders thereof and pending the transfer and/or cancellation and/or purchase to retain the certificate for such shares;

but so that none of the rights or restrictions attached to such Deferred Shares shall be or be deemed to be varied or abrogated in any way by the passing or coming into effect of any resolution of the Company to reduce its share capital and/or reduce or cancel (as the case may be) its share premium account (including, without limitation, a resolution to reduce the capital paid up on, and to cancel, such Deferred Shares).

Interaction with the Loan Notes and the Finance Documents

7.3.13. In the event of a variation of any of the rights or other terms of the Loan Notes in accordance with the Loan Note Instruments (the "**Loan Note Changes**") and the Loan Note Changes being approved if such approval is so required under the Investment Agreement and/or any of the Finance Documents, the following provisions of this Article 7.3.13 shall apply:

- (a) each holder of Preference Shares shall exercise all and any class voting rights attaching to the Preference Shares held by him as directed in writing by the holders of the majority of the A Shares in order to implement changes to the rights and other terms of any Preference Share the effects of which are equivalent to the effects of any Loan Note Change;
- (b) for the avoidance of doubt, a reduction in the value repayable in respect of Preference Shares under Articles 7.3.2-7.3.4 and/or 7.3.6-7.3.10 shall be possible (if the Loan Note Change (so approved, as aforesaid) relates to an equivalent proportionate reduction in the value repayable in respect of Loan Notes) and a conversion of Preference Shares into ordinary or other shares (if the Loan Note Change (so approved, as aforesaid) relates to an equivalent proportionate capitalisation of Loan Notes).

7.3.14. In the event that any right or term of any of the Loan Notes is restricted by the operation of any term of the Investment Agreement and/or any Finance Documents (the "**Loan Note Restriction**"), each holder of Preference Shares (i) agrees that the effect of that Loan Note Restriction shall be deemed to apply to have the same effect on the rights and terms of the Preference Shares and (ii) shall exercise all and any class voting rights attaching to the Preference Shares held by him as directed in writing by the holders of the majority of the A Shares in order to implement changes to the rights and other terms of any Preference Share the effect of which are equivalent to the effect of the Loan Note Restriction.

7.3.15. If any act of the Company requires a class consent of the Preference Shares in terms of the 2006 Act, the holders of Preference Shares hereby agree the following (subject to obtaining any approval which is required in respect of such act under clause 8.5 of the Investment Agreement):

- (a) if such act of the Company gives rise to a Loan Note Change (as defined in Article 7.3.13); or
- (b) if such act of the Company does not require the consent of holders of Loan Notes in terms of any Loan Note Instrument,

each holder of Preference Shares hereby appoints as his attorney and agent any person nominated by the holders of the majority of the A Shares to give any such class consent in his name and on his behalf.

7.4. EVENT OF DEFAULT

Each and every time there is an Event of Default and a written notice thereof has been served upon the Company by the holders of the majority of the A Shares:

- 7.4.1. each member shall exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him as directed in writing by the holders of the majority of the A Shares; and/or
- 7.4.2. subject to clause 18.5 of the Investment Agreement (if applicable), each member (other than holders of A Shares) shall not be entitled to receive (without Investor Director Consent) any further securities in the Company issued by way of rights issue or otherwise; and/or
- 7.4.3. new securities may be issued by the Company (with Investor Director Consent), ranking ahead of or *pari passu* with any securities of any member of the Group which are already in issue, and amendments to these Articles may be made in respect thereof (with Investor Director Consent); and/or
- 7.4.4. the holders of the majority of the A Shares may, by notice in writing addressed to the Company signed by or on behalf of each of them and delivered to the Office, appoint any person or persons to be a Director and/or remove from office any Director.

Each member (other than any holder of A Shares) hereby appoints as his attorney and agent any person nominated by the holders of the majority of the A Shares to take any actions in his name and on his behalf to implement all or any of the provisions of this Article 7.4. For the avoidance of doubt, the foregoing provisions of this Article 7.4 shall apply without prejudice to any requirement for approvals under clause 8 of the Investment Agreement (save that under no circumstances shall it be necessary to obtain any approval of any holder of shares (other than the holders of the majority of the A Shares) under such clause or otherwise in order to serve the written notice referred to at the beginning of this Article 7.4 or to appoint or remove any Director under Article 7.4.4). Subject to any further Events of Default arising, the provisions of this Article 7.4 shall:

- (a) in the case of the circumstances at paragraph (i) of the definition of Event of Default existing, continue to apply until the Loan Notes required to be redeemed or any interest due has been paid;
- (b) in the case of the circumstances at paragraph (ii), (iii) or (iv) of the definition of Event of Default existing, continue to apply for so long as such breach or failure subsists and has not been rectified to the reasonable satisfaction of the holders of the majority of the A Shares.

7.5. DISENFRANCHISEMENT

7.5.1. The provisions of Article 7.5.2 shall apply:

- (a) if, at any time without Investor Director Consent, any person (other than any holder of A Shares) has transferred shares or any interest therein or any other security (or interest therein) in any member of the Group therein in breach of any provision of these Articles or the Nominee Agreement or the B Loan Note Transfer Agreement;
- (b) if, at any time without Investor Director Consent, any person (other than any holder of A Shares) is in material breach of any provision of these Articles and/or the Investment Agreement and/or the Nominee Agreement and/or the B Loan Note Transfer Agreement or any former member (if still bound by the Investment Agreement) (other than an Investor) is in material breach of any provision of the Investment Agreement;
or
- (c) if any person becomes a Leaver.

7.5.2. If any of the circumstances stated in Article 7.5.1 have occurred in respect of the person referred to Article 7.5.1 (the "Defaulting Person"), then, unless otherwise agreed in writing by the holders of the majority of the A Shares:

- (a) the shares in which such Defaulting Person or any Permitted Transferee of such Defaulting Person or the Nominee (or Permitted Transferee thereof) (in such capacity) holds any legal or beneficial interest or to which he is entitled pursuant to the Nominee Agreement or otherwise; and
- (b) any shares (or interests therein) formerly held by such Defaulting Person or any Permitted Transferee of such Defaulting Person or the Nominee (or Permitted Transferee thereof) (in such capacity) which have been transferred either in breach of the provisions of these Articles or in accordance with Article 36 or the Nominee Agreement,

shall cease to entitle the holder of such shares (or any proxy, attorney or other representative) (other than a holder of A Shares) to receive notice of or to attend and vote (whether on a show of hands or on a

poll) at any general meeting or at any separate class meeting of the Company (and as such these shares will be deemed to be non-voting in respect of any written resolutions, written class consents or any other written consents required in respect of a member's equity investment in the Group) or (ii) be entitled to receive any further securities issued by way of rights issue (or otherwise) from the date of any breach referred to at Article 7.5.1(a) or 7.5.1(b), or the Termination Date of the Leaver (as the case may be). Each holder of the shares referred to in the foregoing provisions of this Article 7.5.2 hereby appoints as his attorney and agent any person nominated by the holders of the majority of the A Shares to take any actions in his name and on his behalf to implement all or any of the provisions of this Article 7.5.

7.5.3. The provisions of Article 7.5.2 shall continue to apply:

- (a) in the case of Articles 7.5.1(a) or 7.5.1(b) applying, for so long as such breach subsists;
- (b) in the case of Article 7.5.1(c) applying, until such time as the relevant shares have been transferred pursuant to the provisions of Articles 37 and 38; and
- (c) notwithstanding any other provisions in these Articles, if any Leaver or any Permitted Transferee of any Leaver or the Nominee (or any Permitted Transferee thereof) (in that capacity) retains any interest in any shares (whether or not registered in the name of the Nominee or any other person) after the operation in full of the provisions of Articles 37 and 38 whilst the Nominee or any other holder of such shares (or any person who has acquired such shares under a permitted transfer (directly or indirectly) under Article 36) continues to hold such shares.

7.6. PUT OPTION

7.6.1. For a period of three calendar months from the date on which any B2 or C2 Shares are issued (the "Relevant Period"), any holder (the "Putting Shareholder") of B2 or C2 Shares (the "Put Shares") shall have the option (the "Put Option") exercisable by irrevocable notice in writing to the Company, to be received prior to the expiry of the Relevant Period (the "Put Notice"), to elect that all (but not less than all) of his Put Shares be purchased from him, at an aggregate purchase price of £2,500 for all Put Shares held by him (the "Put Share Consideration"). For the avoidance of doubt, if a Put Notice is not received by the Company in respect of any Put Shares prior to the expiry of the Relevant Period, the Put Option in respect of such Put Shares shall automatically lapse. In the event of any conflict between the terms of this Article 7.6 and the other provisions of these Articles or the Investment Agreement, the other provisions of these Articles or the Investment Agreement shall take priority (including without

limitation the operation of the leaver provisions in Article 37 and 38 which will override this Article 7.6) and in such circumstances the Company and any Put Purchaser shall have no obligation in respect of the Put Option.

- 7.6.2. Following receipt by the Company of a Put Notice served in accordance with Article 7.6.1, the Company shall without delay determine how many, if any, of the Put Shares are to be acquired by the Company and cancelled (a "Put Buyback") and how many, if any are to be transferred (a "Put Transfer") to such person as nominated by the Remuneration Committee in accordance with Article 7.6.5 (a "Put Purchaser"), save that, for the avoidance of doubt, nothing in this Article 7.6 shall create any obligation on the Company to acquire any Put Shares in circumstances where it is not permitted to do so pursuant to the provisions of the CA06, any other legislation to which the Company is subject, or otherwise. The aggregate of all Put Shares being acquired by way of a Put Buyback and the Put Shares being acquired by way of a Put Transfer shall, in each case, be equal to the total number of Put Shares the subject of the Put Notice and the aggregate sum payable for all such Put Shares shall not exceed £2,500.
- 7.6.3. As soon as reasonably practicable following the determination by the Company that some or all of the Put Shares which are to be acquired pursuant to a Put Buyback:
 - (a) the Company shall send a notice to the Putting Shareholder notifying them of the number of their Put Shares are to be acquired pursuant to a Put Buyback;
 - (b) within 10 Business Days of receipt by the Company of the approval of the Put Buyback by the members of the Company in accordance with the provisions of the CA06, the Company shall send a notice confirming receipt of the same to the Putting Shareholder enclosing the share sale agreement (containing such warranties as to title and ownership to the Put Shares as the Company considers appropriate) which has been approved by the members in accordance with the CA06 and any other documents which the Company considers reasonably required to give effect to the Put Buyback;
 - (c) within five Business Days of receipt by the Putting Shareholder of the notice and documentation referred to in Article 7.6.3(b) above, the Putting Shareholder shall deliver to the Company:
 - (i) the share certificate(s) (or an indemnity in a form that is reasonably satisfactory to the Company in respect of a share certificate that cannot be produced) in respect of the Put Shares being acquired pursuant to the Put Buyback; and

- (ii) a duly executed copy of the share sale agreement and any other document notified to the Putting Shareholder as being required in connection with the Put Buyback in the notice referred to in Article 7.6.3(b) above; and
- (iii) within five Business Days of receipt by the Company of the documentation set out in Article 7.6.3(c) above, the Company shall procure the payment to the Putting Shareholder of such amount of the Put Share Consideration as relates to the Put Shares acquired by way of the Put Buyback.

7.6.4. As soon as reasonably practicable following the determination by the Company that some or all of the Put Shares are to be acquired by way of a Put Transfer, or where any Put Shares are proposed to be acquired by way of a Put Buyback and such proposed Put Buyback does not receive the necessary approval of the members in accordance with the CA06 or is otherwise not permitted:

- (a) the Company shall send a notice to the Putting Shareholder notifying them of the number of their Put Shares are to be acquired pursuant to a Put Transfer, enclosing a share sale agreement (containing such representations and warranties as to title and ownership to the Put Shares as the Company considers appropriate), a form of transfer in respect of the Put Shares and any other documents which the Company considers reasonably required to give effect to the Put Transfer;
- (b) within five Business Days of receipt by the Putting Shareholder of the notice and documentation referred to in Article 7.6.4(a) above, the Putting Shareholder shall deliver to the Company:
 - (i) the share certificate(s) (or an indemnity in a form that is reasonably satisfactory to the Company in respect of a share certificate that cannot be produced) in respect of the Put Shares being acquired pursuant to the Put Transfer; and
 - (ii) duly executed copies of the share sale agreement, the form of transfer and any other document notified to the Putting Shareholder as being required in connection with the Put Transfer in the notice referred to in Article 7.6.4(a) above; and
 - (iii) within five Business Days of receipt by the Company of the documentation set out in Article 7.6.4(b) above, the Put Purchaser shall procure the payment to the Putting Shareholder of such amount of the Put Share

Consideration as relates to the Put Shares acquired by way of the Put Transfer.

7.6.5. The transferee of any Put Transfer may be as determined by the Remuneration Committee (with Investor Director Consent):

- (a) any Investor (as defined in the Investment Agreement);
- (b) a current, new or prospective employee, director or consultant of the Group;
- (c) an employee benefit trust or any other warehousing vehicle for the benefit of employees; and/or
- (d) in the absence of a person falling within paragraphs (a) to (c) above having been identified as yet, any other person nominated by the Remuneration Committee (with Investor Director Consent).

ISSUES OF SHARES

8. Issues of Shares

- 8.1. Any shares may be issued on the terms that they are, or at the option of the Company or the holder are liable, to be redeemed and the Board (with Investor Director Consent) shall be authorised to determine the terms, conditions and manner of redemption of such shares.
- 8.2. Subject to the provisions of these Articles and to the provisions of the 2006 Act and of every other statute for the time being in force concerning companies and affecting the Company, the Board (with Investor Director Consent) may offer, allot, issue, grant options or rights over or otherwise dispose of any shares in the Company to such persons, at such times and for such consideration and upon such terms and conditions and with such preferred, deferred or other special rights or restrictions whether in regard to dividend, voting, return of capital or otherwise as the Board (with Investor Director Consent) may determine, but so that no shares shall be issued at a discount.
- 8.3. For the purposes of Section 551 of the 2006 Act, the Board (with Investor Director Consent) is authorised generally and unconditionally to allot without the authority of the Company in general meeting up to a maximum of £[•] in nominal amount of shares of the Company, comprising [•] at any time or times from the date of adoption of these Articles until the date occurring five years after such date. The aforesaid authority may be revoked or varied by the Company in general meeting and may be renewed by the Company in general meeting for a further period not exceeding five years. The Company may make any offer or agreement before the expiry of this authority which would or might require relevant securities to be allotted after this authority has expired and the Board (with Investor

Director Consent) may allot relevant securities in pursuance of any such offer or agreement notwithstanding the expiry of this authority. In this Article, references to the allotment of shares shall include the grant of rights to subscribe for, or to convert any security into shares.

- 8.4. In accordance with Section 570 of the 2006 Act, Section 561(1) of the 2006 Act shall be excluded from applying to the allotment of equity securities (as defined in Section 560 of the 2006 Act).
- 8.5. The Directors shall not allot any shares unless notice in writing is given to each holder of A Shares, the Nominee (for so long as it is a holder of shares and only to the extent it holds shares on behalf of persons who are not Leavers or Permitted Transferees of any Leaver or Permitted Transferees of the Nominee (in such capacity)) and each other holder of Equity Shares (other than the Nominee or holders of A Shares) who is not a Leaver or a Permitted Transferee of any Leaver or a Permitted Transferee of the Nominee in such capacity (the "**Potential Subscribers**") specifying:
 - 8.5.1. the number and classes of shares which are proposed to be issued;
 - 8.5.2. the consideration payable on such issue; and
 - 8.5.3. any other material terms or conditions (including any requirement that in order to subscribe for the shares which are offered it will be necessary for the Potential Subscribers to also subscribe for or invest in any other debt securities in the Company or any other member of the Group on the same terms as any Potential Subscribers who are the holders of A Shares are subscribing for or investing in any such debt securities).
- 8.6. The notice specified in Article 8.5 shall invite each Potential Subscriber to state, in writing within 20 Business Days from the date of such notice (which date shall be specified therein), whether he/it is willing to subscribe for any, and if so, how many shares.
- 8.7. A Potential Subscriber accepting the offer shall be issued with his Proportionate Element of the total number of shares proposed to be issued pursuant to Article 8.5 provided that such Potential Subscriber shall not be allocated more shares than he shall have stated himself willing to take. It shall be open to each such Potential Subscriber accepting the offer to specify if he/it is willing to subscribe for shares in excess of his Proportionate Element ("**Additional Shares**") and, if the holder does so specify, he shall state the number of Additional Shares. In these Articles, "**Proportionate Element**" means the proportion which Equity Shares held by the Potential Subscriber bear to the total number of Equity Shares held by all Potential Subscribers accepting such offer.
- 8.8. Within three Business Days of the expiry of the invitation made pursuant to the notice given under Article 8.5 (or sooner if all Potential Subscribers have responded to the invitation and all the shares proposed to be issued have been accepted in the manner provided for in Article 8.2), the Board shall allocate the shares in the following manner:

- 8.8.1. if the total number of shares applied for is equal to or less than the available number of shares to be issued the Company shall allocate the number applied for in accordance with the applications; or
- 8.8.2. if the total number of shares applied for is more than the available number of shares to be issued, each Potential Subscriber accepting the offer shall be allocated his Proportionate Element (or such lesser number of shares to be issued for which he may have applied) and applications for Additional Shares shall be allocated in accordance with such applications or, in the event of competition, (as nearly as may be) to each Potential Subscriber applying for Additional Shares in pro rata according to the proportion of the total number of Equity Shares held by all such Potential Subscribers represented by each such Potential Subscriber's holding of Equity Shares.

and in either case the Company shall forthwith give notice of each such allocation (an "Issue Notice") to each of the persons to whom shares are to be issued (a "Member Subscriber") and shall specify in the Issue Notice the time (being not later than 10 Business Days after the date of the Issue Notice) at which the allotment of the shares shall be made.

- 8.9. Upon such allocations being made as set out in Article 8.8 and subject to compliance with the terms and conditions set out in the offer, the Board shall be bound, on payment of the subscription price, to issue the shares comprised in the Issue Notice to the Member Subscriber named therein at the time therein specified free from any lien, charge or encumbrance.
- 8.10. Notwithstanding any other provisions of these Articles, no shares shall be allotted to any person unless that person has first entered into any tax elections and any other relevant regulatory documentation required in any relevant jurisdiction if required to do so by the holders of the majority of the A Shares and a deed of adherence if so required by the Investment Agreement.
- 8.11. The provisions of Articles 8.5-8.9 shall have no application to any of the following:
 - 8.11.1. to any holder of Equity Shares (other than A Shares) to the extent the provisions of Article 7.4 or 7.5 apply to such holder or his shares;
 - 8.11.2. to any issue of shares pursuant to clause 16.1 and 16.2 of the Investment Agreement;
 - 8.11.3. to any issue of shares pursuant to an Emergency Fund Raising (as defined in the Investment Agreement);
 - 8.11.4. when the catch-up right set out in clause 18.5 of the Investment Agreement applies;
 - 8.11.5. to any Potential Subscriber (other than any holder of A Shares) whose investment in the shares or other securities in the Group would, as a result of any law or regulation or legal rule affecting such investment

or the Potential Subscriber (or any person who will hold any interest in such investment) in any relevant jurisdiction, require any member of the Group to comply with any onerous (in the opinion of the Remuneration Committee (acting reasonably)) restriction, requirement, condition or administration process or to incur any material (in the opinion of the Remuneration Committee (acting reasonably)) actual or potential liabilities, costs, fees or expenses which the Remuneration Committee (acting reasonably) does not approve; and

- 8.11.6. to any Potential Subscriber (other than any holder of A Shares) in respect of which the Remuneration Committee (acting reasonably) is not satisfied that such Potential Subscriber has complied with or will be able to comply with all laws affecting him or his investment in any relevant jurisdiction.
- 8.12. References in Articles 8.5-8.9 to the issue and allotment of shares do not include the transfer of any shares by the Company out of treasury by way of sale or transfer.
- 9. The Company shall not be bound by or be compelled in any way to recognise (even when having notice thereof) any equitable, contingent, future or partial interest in any share or any interest in any fractional part of a share or (except only as otherwise provided by these Articles or by law) any other rights in respect of any share except an absolute right to the entirety thereof held by the registered holder. The Company shall however be entitled to register trustees as such in respect of any shares.

LIEN

- 10. The Company shall have a first and paramount lien on every share for all moneys (whether presently payable or not) payable at a fixed time or called in respect of that share and the Company shall also have a first and paramount lien on all shares standing registered in the name of a single person or in the name of any person jointly with another or others for all monies presently payable by him or any of them or his estate or their estates to the Company. The Board (with Investor Director Consent) may at any time declare any share to be wholly or in part exempt from the provisions of this Article.

TRANSFER OF SHARES

- 11. **Transfer of Shares**
 - 11.1. The Directors shall register any transfer of shares made in accordance with the provisions of Articles 36, 37, 38, 40, 41, 42 and/or 43. Save as aforesaid (i) the Board (with Investor Director Consent) may, in their absolute discretion and without assigning any reason therefore, decline to register any transfer of any shares, whether or not such shares are fully paid and (ii) no member or person holding any interest in any share shall transfer any share or any interest therein without A Shareholder Consent. In respect of any share (other than A Shares) the legal and beneficial ownership of any such share

shall belong to one person only, subject to the Nominee Agreement or A Shareholder Consent.

- 11.2. Subject to such of the restrictions set out in these Articles as may be applicable, any member may transfer all or any of his shares by instrument of transfer in writing in any usual or common form or in any other form which the Board may approve. The instrument of transfer shall be executed by or on behalf of the transferor and (except in the case of fully paid shares) by or on behalf of the transferee and the transferor shall remain the holder of the shares and as such a member of the Company until the name of the transferee is entered in the Register of Members in respect thereof.

GENERAL MEETINGS

12. No business shall be transacted at any general meeting unless a quorum of members is present at the time when the meeting proceeds to business. Save as otherwise provided in these Articles, two members, one of whom, for so long as there is a Dunedin Advised Member, shall be a Dunedin Advised Member, present in person or by proxy or, if a corporation, by a duly authorised representative shall be a quorum.
13. If a quorum is not present within half an hour of the time appointed for a general meeting then the meeting, if convened on the requisition of members, shall be dissolved; in any other case it shall stand adjourned to such day and at such time and place as the Board (with Investor Director Consent) may determine, and if at the adjourned meeting a quorum is not present within half an hour from the time appointed for the meeting the members present shall be a quorum.
14. A resolution in writing (i) in respect of the passing of an ordinary resolution, signed by the holders of a simple majority of the total Voting Rights of 'eligible members' of the Company; or (ii) in respect of the passing of a special resolution, signed by the holders of a 75% majority of the total Voting Rights of 'eligible members' of the Company; in each case shall be as valid and effectual as if it had been passed at a general meeting of the Company duly convened and held. Any special resolution to be passed as a written resolution must state on the face of the resolution that it is to be passed as a special resolution. Any written resolution may consist of several documents in the like form each signed by one or more of the members or their duly appointed attorneys or representatives and the signature in the case of a corporation which is a member shall be sufficient if made by a director or the secretary thereof or by its duly appointed attorney(s) or representative(s).
15. The vote on every resolution proposed at every general or class meeting shall be taken and determined by way of a poll unless otherwise agreed by Investor Director Consent.
16. No resolution not previously approved by the Board shall be moved by any member at a general meeting unless the member intending to move the same shall have left a copy thereof with his name and address at the Office at least three clear days prior to such meeting.

17. A notice of every general meeting shall be given to every member whether or not he shall have supplied to the Company an address within the United Kingdom for the giving of notices.

DIRECTORS

18. The quorum for the transaction of the business of the Directors, unless there is only one Director, shall be three, one of whom shall be an Investor Director (unless no Investor Director is, at the relevant time, appointed or the provisions of Article 19 apply). A person who holds office only as an alternate Director shall, if his appointer is not present, be counted in the quorum.
19. Notwithstanding Article 18, if the conflict of interest provisions contained in the 2006 Act apply such that there is no Investor Director who is entitled to vote, form part of the quorum or attend any meeting of the Directors despite the application of Article 45 or any authorisation granted in respect of an Investor Director pursuant to Article 45.2 then the quorum requirements for the relevant meeting shall not require an Investor Director to form part of the quorum.
20. Unless and until otherwise determined by ordinary resolution of the Company and with A Shareholder Consent, the minimum number of Directors shall be one and there shall be no maximum number of Directors. A sole Director shall have all the power and authority vested in "the Directors" in terms of these Articles.
21. A Director shall not be required to hold shares of the Company in order to qualify for office as a Director, but he shall be entitled to receive notice of and attend and speak at all general meetings of the Company or meetings of any class of members of the Company.
22. A Director who is in any way whether directly or indirectly interested in an actual or proposed transaction or arrangement with any member of the Group shall declare the nature and extent of his interest at a meeting of the Directors in accordance with Section 177 and/or 182 of the 2006 Act. Subject to such disclosure as aforesaid a Director may vote in respect of any actual or proposed transaction or arrangement in which he is interested and if he does so vote his vote shall be counted and he may be counted in ascertaining whether a quorum is present at any meeting at which any actual contract or proposed transaction or arrangement shall come before the Directors for consideration and may retain for his own absolute use and benefit all profits and advantages accruing to him therefrom. For the purposes of this Article:
 - 22.1. a general notice given to the Directors that a Director is to be regarded as having an interest of the nature and extent specified in the notice in any transaction or arrangement in which a specified person or class of persons is interested shall be deemed to be a disclosure that the Director has an interest in any such transaction of the nature and extent so specified; and

- 22.2. an interest of which a Director has no knowledge and of which it is unreasonable to expect him to have knowledge shall not be treated as an interest of his.
- 23. The Directors may dispense with the keeping of attendance records for meetings of the Directors or committees of the Directors. Article 15 of the Model Articles shall be modified accordingly.
- 24. The office of a Director shall be vacated:
 - 24.1. if he becomes bankrupt or suspends payment of or compounds with his creditors;
 - 24.2. if he becomes of unsound mind or a patient for the purpose of any statute relating to mental health or otherwise mentally incapacitated;
 - 24.3. if (not being a Director holding executive office as such for a fixed term) by notice in writing to the Company he resigns his office;
 - 24.4. if he is prohibited by law from being a Director or ceases to be a Director by virtue of any provision of the 2006 Act;
 - 24.5. if he, not being an Investor Director appointed pursuant to Article 44, is removed from office by notice in writing signed by all his co-Directors and served upon him;
 - 24.6. if he, not being an Investor Director, is removed from office by operation of Article 7.4.4 or by notice in writing signed by the holders of shares representing more than 50% of the aggregate Voting Rights or more than 50% of the aggregate Equity Shares; or
 - 24.7. if he shall for more than six consecutive months have been absent without permission of the Directors from meetings of the Directors held during that period and the Directors resolve that his office be vacated.
- 25. The Board (with Investor Director Consent), and/or the members, by way of an ordinary resolution, shall have power at any time to appoint any person to be a Director either to fill a casual vacancy or as an addition to the existing Directors. The powers to appoint Directors under Articles 7.4.4 and/or 44 shall not be subject to the foregoing provisions of this Article 25 and shall apply in addition to any powers of appointment held by the Board or the members.
- 26. The Directors may repay to any Director all such reasonable expenses as he may properly incur in attending meetings of the Directors or of any committee of the Directors or general meetings of the Company or any class of members of the Company or otherwise in or about the business of the Company. In the event of any Director necessarily performing or rendering any special duties or services to the Company outside his ordinary duties as a Director, the Directors may, if so authorised by the Remuneration Committee, pay such Director special remuneration and such special remuneration may be paid by way of salary, commission, participation in profits or otherwise as

may be arranged and approved by the Board (with Investor Director Consent).

27. The Directors may from time to time appoint one or more of their number to an executive office (including that of Chief Executive Officer, Chief Financial Officer, Managing Director, Deputy or Assistant Managing Director, Manager or any other salaried office) for such period and on such terms and conditions as they shall think fit and, subject to the terms and conditions of any agreement entered into in any particular case, may revoke such appointment. Subject to the terms and conditions of any such agreement the appointment of any Director as aforesaid shall be ipso facto determined if he ceases for any cause to be a Director.
28. A Chief Executive Officer, Managing Director, Deputy or Assistant Managing Director, Manager or other executive officer as aforesaid shall receive such remuneration (either by way of salary, commission, participation in profits or pension or otherwise howsoever, whether similar to the foregoing or not) as the Directors (with Investor Director Consent) or the Remuneration Committee may determine.
29. The Directors (with Investor Director Consent) on behalf of the Company and without the approval of any resolution of the Company may establish, maintain, participate in and contribute to, or procure the establishment and maintenance of, participation in and contribution to, any pension, superannuation, benevolent or life assurance fund, scheme or arrangement (whether contributory or otherwise) for the benefit of any persons (including Directors, former Directors, officers and former officers) who are or shall have been at any time in the employment or service of the Company or of any company which at the time is or was a subsidiary or a holding company of the Company or another subsidiary of a holding company of the Company (as defined in Section 1159 of the 2006 Act) or otherwise associated with the Company or of the predecessors of the Company in business or of any such other company as aforesaid, or for the benefit of the relations, spouses, widows, families, connections or dependants of any such persons or for the benefit of any other persons whose service or services have directly or indirectly been of benefit to the Company and their relations, connections or dependants, and the Directors (with Investor Director Consent) on behalf of the Company and without the approval of any resolution of the Company may grant or procure the grant of donations, gratuities, pensions, allowances, including allowances on death, or other payments or benefits of any kind to any of such persons as aforesaid; and the Directors (with Investor Director Consent) on behalf of the Company and without the approval of any resolution of the Company may establish, subsidise, subscribe to or support institutions, associations, clubs, schools, funds or trusts calculated or considered to be for the benefit of any of such persons as aforesaid or otherwise for the advancement of the interests and well-being of the Company or of any such other company as aforesaid or its members; and the Directors (with Investor Director Consent) on behalf of the Company and without the approval of any resolution of the Company may make payments for or towards the insurance of any of such persons as aforesaid. Any such Director or ex-Director may participate in and retain for his own benefit any

such donation, gratuity, pension, allowance, payment or other benefit conferred under or pursuant to this Article and the receipt thereof shall not disqualify any person from being or becoming a Director of the Company.

30. The Directors (with Investor Director Consent) on behalf of the Company and without the approval of any resolution of the Company may establish and contribute to any employees' share scheme (within the meaning of Section 1166 of the 2006 Act) for the purchase or subscription by trustees of shares of the Company or of a holding company of the Company and may lend money to the Company's employees to enable them to purchase or subscribe for shares of the Company or of a holding company of the Company; and may establish and maintain any option or incentive scheme whereby selected employees (including salaried Directors and officers) of the Company are given the opportunity of acquiring shares in the capital of the Company; and may formulate and carry into effect any scheme for sharing the profits of the Company with its employees (including salaried Directors and officers) or any of them. Any Director may participate in and retain for his own benefit any such shares, profit or other benefit conferred under or pursuant to this Article and the receipt thereof shall not disqualify any person from being or becoming a Director of the Company.
31. Without prejudice to Article 8 of the Model Articles, a resolution in writing signed by all the Directors from time to time shall be as valid and effectual as a resolution passed at a meeting of the Directors duly convened and held and may consist of several documents in the like form, each signed by one or more of the Directors.
32. A meeting of the Directors or of any committee of the Directors may consist of a conference between Directors who are not all in one place, but of whom each is able (directly or by telephonic communication) to speak to each of the others, and to be heard by each of the others simultaneously. A Director taking part in such a conference shall be deemed to be present in person at the meeting and shall be entitled to vote or be counted in a quorum accordingly. Subject to the 2006 Act, all business transacted in such manner by the Directors or any committee of the Directors shall, for the purposes of these Articles, be deemed to be validly and effectively transacted at a meeting of the Directors or a committee notwithstanding that fewer than two Directors or alternate Directors are physically present at the same place. Such a meeting shall be deemed to take place where the largest group of those participating is assembled or, if there is no such group, where the chairman of the meeting then is. The word "meeting" in these Articles shall be construed accordingly.

BORROWING AND OTHER POWERS

- 33.
- 33.1. The Directors (with Investor Director Consent) may exercise all the powers of the Company without limit as to amount to borrow and raise money and to accept money on deposit and to grant any security, mortgage, charge or discharge as they may consider fit for any debt or obligation of the Company

or which is binding on the Company in any manner or way in which the Company is empowered so to grant and similarly as they may consider fit to enter into any guarantee, contract of indemnity or suretyship in any manner or way in which the Company is empowered so to enter into.

- 33.2. The payment of any dividends, return of capital on, buy back or redemption of any shares or any capital reduction shall be subject to any provisions restricting the same in the Finance Documents.

ALTERNATE DIRECTORS

34. Alternate Directors

- 34.1. Any Director (other than an alternate Director) may at any time by writing under his hand and deposited at the Office, or delivered at a meeting of the Directors, appoint any person to be his alternate Director and may in like manner at any time terminate such appointment. If such alternate Director is not another Director, such appointment, unless previously approved by the Directors (with Investor Director Consent), shall have effect only upon and subject to being so approved (provided that the appointment of an alternate by an Investor Director shall be effective immediately on notice of such appointment being given to the Company and shall not require the approval of the Directors in any circumstances).
- 34.2. The appointment of an alternate Director shall determine on the happening of any event which, if he were a Director, would cause him to vacate such office or if his appointer ceases to be a Director.
- 34.3. An alternate Director shall (except when absent from the United Kingdom) be entitled to receive notice of all meetings of the Directors and of all meetings of committees of the Directors of which his appointer is a member and shall be entitled to attend and vote as a Director at any such meetings at which his appointer is not personally present and generally at such meetings to perform all the functions of his appointer as a Director in his absence and for the purposes of the proceedings at such meeting the provisions of these Articles shall apply as if he were a Director. An alternate Director's signature to any resolution in writing of the Directors shall be as effective as the signature of his appointer. Every person acting as an alternate Director shall have one vote for each Director for whom he acts as alternate (in addition to his own vote if he is also a Director). An alternate Director shall not (save as aforesaid) have power to act as a Director or be deemed to be a Director for the purposes of these Articles.
- 34.4. An alternate Director may be repaid expenses and shall be entitled to be indemnified by the Company to the same extent *mutatis mutandis* as if he were a Director but he shall not be entitled to receive from the Company any remuneration except only such proportion (if any) of the remuneration otherwise payable to his appointer as such appointer may by notice in writing to the Company from time to time direct.

INDEMNITY AND INSURANCE

35. Indemnity and Insurance

35.1. Without prejudice to any other indemnity which may from time to time be applicable, a relevant officer of the Company or an associated company shall, subject to Investor Director Consent, be indemnified out of the assets of the Company against:

35.1.1. any liability incurred by that officer in connection with any negligence, default, breach of duty or breach of trust in relation to the Company or an associated company;

35.1.2. any liability incurred by that officer in connection with the activities of the Company or an associated company in its capacity as a trustee of an occupational pension scheme (as defined in section 235(6) of the 2006 Act); and

35.1.3. any other liability incurred by that officer as an officer of the Company or an associated company;

provided always that this Article does not authorise any indemnity which would be prohibited or rendered void by any provision of the 2006 Act or by any other provision of law.

In this article:

- (a) companies are associated if one is a subsidiary of the other or both are subsidiaries of the same body corporate; and
- (b) a "relevant officer" means any Director, former Director, company secretary or former company secretary or other officer of the Company or an associated company (but not its auditor).

35.2. The Directors (with Investor Director Consent) may decide to purchase and maintain insurance at the expense of the Company for the benefit of any relevant officer in respect of any relevant loss. Without prejudice to the generality of Article 22 at a meeting of the Directors where such insurance is under consideration a Director may form part of the quorum and vote notwithstanding any interest he may have in such insurance.

In this article:

35.2.1. a "relevant officer" means any Director or former Director, company secretary or former company secretary of the Company or an associated company, any other officer or employee or former officer or employee of the Company (but not its auditor) or any trustee of an occupational pension scheme (as defined in section 235(6) of the 2006 Act) for the purposes of an employees' share scheme of the Company or an associated company;

35.2.2. a "relevant loss" means any loss or liability which has been or may be incurred by a relevant officer in connection with that relevant officer's duties or powers in relation to the Company, any associated company or any pension fund or employees' share scheme of the Company or associated company; and

35.2.3. companies are associated if one is a subsidiary of the other or both are subsidiaries of the same body corporate.

PERMITTED TRANSFERS

36. The following transfers of shares may be made without restriction as to price or otherwise and without any requirement, save in the case of Article 36.5 below, to comply with the provisions of Article 40, 41 or 42 namely transfers of any shares:

36.1. (i) by any nominee (including the Nominee) to any other nominee of the same beneficiary/ beneficiaries or to any beneficiary or beneficiaries or (ii) pursuant to the Nominee Agreement or (iii) by any Original Employee Member to any Privileged Relation or to any Family Settlement, subject in each such case to the following:

36.1.1. the transfer must have received A Shareholder Consent (not to be unreasonably withheld or delayed); and

36.1.2. the transferee must undertake in a form approved by A Shareholder Consent (including a power of attorney in respect of the transferred shares) that any voting rights in respect of the shares in question remain under the control of the Nominee or the transferor and that he will be bound by these Articles (in particular, the provisions of Articles 37 and 38 as if he were the Nominee or the Original Employee Member (as the case may be) and the transferred shares remained held by the Nominee or the Original Employee Member) and on completion of any transfer in accordance with the foregoing provisions of this Article 36.1, the transferee shall be deemed to have conferred irrevocable authority on any person nominated by the holders of the majority of the A Shares as his attorney or agent to sign any resolution, consent, transfer form or other document whatsoever and/or take any action in the Nominee or Original Employee Member's name and on his behalf to implement the provisions of Articles 37 and 38;

36.2. by the trustees of any trust established for the benefit of employees, Directors or consultants (or former employees, Directors or consultants) of any member of the Group to the beneficiaries of such trust (or any of them) and/or by any member to the trustees of such trust to hold on trust for the benefit of the beneficiaries of the trust, in either case as may be approved by an Investor Director Consent;

36.3. by any holder of A Shares to:

- 36.3.1. any syndicatee in accordance with Schedule Part 13 of the Investment Agreement;
- 36.3.2. the Investment Manager or any subsidiary undertaking of the Investment Manager or Dunedin Capital Group Holdco Limited or any company in the same group as Dunedin Capital Group Holdco Limited or any limited partnership or limited liability partnership or other entity established by the Investment Manager to carry on the investment management business of the Investment Manager (together the "**Dunedin Group**" and each a "**member of the Dunedin Group**");
- 36.3.3. any member of the Investment Manager or any employee, director or consultant of any member of the Dunedin Group;
- 36.3.4. any fund or funds or entity/entities advised or managed by the Investment Manager or another member of the Dunedin Group;
- 36.3.5. any entity which invests in parallel, or co-invests, with any holder of A Shares or any fund or funds advised or managed by any member of the Dunedin Group; and
- 36.3.6. any current or bona fide (as determined by the holders of the majority of the A Shares (acting reasonably)) prospective investor or partner or member from time to time in any fund or funds advised or managed by the Investment Manager or another member of the Dunedin Group;
- 36.4. by any Financial Institution or a fund, partner, custodian, trustee, nominee of any Financial Institution or fund to:
 - 36.4.1. the holders of units in, or a nominee, custodian or trustee for the holders of units in, or partners in, or members of, or investors in, such Financial Institution or fund (as applicable);
 - 36.4.2. a current or bona fide (as determined by the holders of the majority of the A Shares (acting reasonably)) prospective partner in, member of or investor in such Financial Institution or fund;
 - 36.4.3. a nominee, custodian or trustee for such Financial Institution or fund (as applicable);
 - 36.4.4. the investment manager or investment adviser of such Financial Institution or fund or any company in the same group as such investment manager or adviser or any limited partnership or limited liability partnership or other entity established by such investment manager or adviser to carry on the investment management or advisory business of such investment manager or adviser (together the "**IM Group**" and each a "**member of the IM Group**");
 - 36.4.5. any employee, director or consultant of any member of the IM Group;

- 36.4.6. any entity which invests in parallel, or co-invests, with any such Financial Institution or fund;
- 36.4.7. another Financial Institution or fund (or nominee, custodian or trustee for another Financial Institution or fund) or entity which is managed or advised by the same manager or adviser as the transferor or by any member of the same group of companies of such manager or adviser or by any Financial Institution or fund managed or advised by any such group company;
- 36.5. by any member with A Shareholder Consent; and/or
- 36.6. in accordance with clause 16.2 of the Investment Agreement.

If any person to whom shares are transferred pursuant to sub-paragraphs 36.1 to 36.4 (other than Article 36.3.1) above ceases to be within the required relationship with the original transferor of such shares, such shares together with any shares which have been transferred by such person under Article 36 shall be transferred back to the original transferor (or to any other person falling within the required relationship with the original transferor) forthwith upon such relationship ceasing and, if the holder of such shares fails to make such transfer, Article 7.5.1(b) shall apply.

COMPULSORY TRANSFERS

37. Compulsory Transfers of Shares (other A Shares and Preference Shares)

- 37.1. If required by any Investor Director or the holders of the majority of the A Shares in issue at any time during the Leaver Period in respect of a Leaver, the Company shall serve a notice in writing on the Nominee, Leaver and their respective Permitted Transferees (if any) (each a "**Relevant Transferor**") requiring the Relevant Transferor to offer for sale all of the Leaver Shares (a "**Compulsory Transfer Notice**"). Upon service of a Compulsory Transfer Notice the Relevant Transferor shall be deemed to have agreed to the sale of such Leaver Shares (and such deemed agreement shall supersede any transfer pursuant to these Articles which has not completed) and, subject to Article 37.2, the provisions of Article 38 shall apply (the "**Deemed Transfer**"). A Relevant Transferor may not voluntarily transfer any interest in any shares after the service of a Compulsory Transfer Notice on him save in accordance with or as required by Articles 37, 38, 40, 41, 42 and/or 43.
- 37.2. A Deemed Transfer shall be deemed to provide that the Specified Price in respect of shares the subject of the Deemed Transfer shall be:
 - 37.2.1. if the Leaver is a Good Leaver, each Leaver Share which is a C1 or C2 or D Share will be offered at the Fair Price thereof as at the date of service of the Compulsory Transfer Notice; and
 - 37.2.2. if the Leaver is a Bad Leaver, each Leaver Share which is a C1 or C2 or D Share will be offered at the lower of:
 - (a) the Fair Price thereof as at the date of service of the Compulsory Transfer Notice; and

- (b) the original issue price (being the nominal value and share premium paid thereon); and

37.2.3. if the Leaver is a Very Bad Leaver (and in the case of Nick Kent, he will only be a Very Bad Leaver if any of the circumstances of paragraph (b) of the definition of Very Bad Leaver apply in respect of him (and for the avoidance of doubt, Nick Kent's cessation will not result in Article 37.2.1 (Good Leaver) or 37.2.2 (Bad Leaver) applying to his B1 Shares)), each Leaver Share which is a B1, B2, C1, C2 or D Shares will be offered at the lower of:

- (a) the Fair Price thereof as at the date of service of the Compulsory Transfer Notice; and
- (b) the original issue price (being the nominal value and share premium paid thereon).

37.3. The Remuneration Committee shall have the right (but not the obligation) at its absolute discretion to notify any member holding Leaver Shares (in the Compulsory Transfer Notice or otherwise) that (a) not all or none of the Leaver Shares are to be the subject of any offer for sale pursuant to this Article 37 and Article 38; and/or (b) that a Bad Leaver or Very Bad Leaver shall be deemed to be a Good Leaver or a Very Bad Leaver shall be deemed a Bad Leaver for the purposes of Article 38; and/or (c) the Specified Price will be greater than that determined in accordance with Article 37.2 and may, by notice in writing served on any member holding Leaver Shares, suspend the operation of any offer for sale pursuant to this Article 37 and Article 38 until the Specified Price is agreed or determined.

37.4. If a Leaver (or any of Permitted Transferees of such Leaver, or the Nominee or any Permitted Transferee of the Nominee on his behalf) acquires any Leaver Shares or any interest in any Leaver Share (whether upon exercise of options or other rights to acquire shares) after the Termination Date, the Leaver (or any person who is his Permitted Transferee, or the Nominee or any Permitted Transferee of the Nominee on his behalf) shall be deemed on the date of acquisition of such shares to have agreed to the sale of all such Leaver Shares (and such deemed agreement shall supersede any transfer pursuant to these Articles which has not completed) and, subject to Article 37.2, the provisions of Article 38 shall apply.

37.5. If a member or any person on behalf of whom that member holds shares becomes insolvent or bankrupt or makes any arrangement or composition with his creditors, any Investor Director or the holders of the majority of the A Shares may require the foregoing provisions of this Article 37 to apply so that there is a Deemed Transfer in respect of all or any shares held by any such member on the basis that the Specified Price shall be the Fair Price of each such share as at the date on which any Investor Director or the holders of the majority of the A Shares determine to operate this Article 37.6.

TRANSFER OF LEAVER SHARES

38. **Transfer of Leaver Shares (other than A Shares and Preference Shares) under the operation of Article 37**
- 38.1. Each Deemed Transfer shall constitute the Directors as the agent of the proposing transferor for the sale of the Leaver Shares in accordance with this Article 38.
- 38.2. Within 5 days of the date on which the Fair Price is determined in respect of the Leaver Shares in accordance with Article 39 (the "**Allocation Period**"), the Remuneration Committee shall subject to clause 19.1.4 of the Investment Agreement determine how many of the Leaver Shares (if any) should be allocated to existing or prospective employees, directors or consultants of any member of the Group (and/or the Nominee on their behalf) and/or to a trust established (with Investor Director Consent) for the benefit of such past, present or future employees, directors or consultants (or for the avoidance of doubt a combination of any of the foregoing) (the "**Allocation Decision**" (which for the avoidance of doubt shall include any operation of clause 19.1.4 of the Investment Agreement) and if such an Allocation Decision is achieved in respect of Leaver Shares the final allocations of Leaver Shares shall be made to the relevant persons referred to in, and in accordance with, the Allocation Decision. If the Allocation Decision is achieved in respect of some but not all of the Leaver Shares or if the Allocation Decision achieved does not provide for any allocation of the Leaver Shares or if no Allocation Decision is achieved within the aforesaid Allocation Period, the Leaver Shares (excluding any which have been allocated in accordance with an Allocation Decision) shall be retained by the holder of the Leaver Shares subject to these Articles and the Investment Agreement (and the Nominee Agreement (if applicable)).
- 38.3. The persons to whom final allocations are made in accordance with the foregoing provisions of this Article 38 shall be the "**Final Purchasers**".
- 38.4. It shall not be possible for any holder or person interested in Leaver Shares to state that they are not willing to transfer part only of the Leaver Shares and as such allocations to Final Purchasers shall be effective in spite of the fact that all the Leaver Shares may not have been allocated.
- 38.5. Forthwith upon such allocations being made, the Final Purchasers shall be bound to pay to the Company (as agent for the proposing transferor) the Specified Price for, and to accept a transfer of, the Leaver Shares so allocated to them respectively and the proposing transferor shall be bound forthwith upon payment of the Specified Price as aforesaid to deliver to the Company (as agent for the Final Purchasers) such documents as are required to transfer such shares to the respective Final Purchasers.
- 38.6. If in any case the proposing transferor, after having become bound to transfer Leaver Shares as aforesaid, does not do so, the Company may receive the Specified Price and the Directors or the holders of the majority of A Shares may appoint some person to execute instruments of transfer of such Leaver Shares in favour of the Final Purchasers and shall thereupon, subject to such

transfers being properly stamped (if applicable), cause the name of each of the Final Purchasers to be entered in the Register of Members as the holder of those Leaver Shares allocated to him as aforesaid and shall hold the Specified Price in trust for the proposing transferor. The issue of a receipt by the Company therefor shall be a good discharge to the Final Purchasers and after their names shall have been entered in the Register of Members in exercise of the aforesaid power, the validity of the transactions shall not be questioned by any person.

FAIR PRICE

39.1. "Fair Price" means the price per relevant share which is the subject of the relevant transfer as at the relevant date to be determined in accordance with the Articles and is (a) as agreed between the relevant transferor and the Remuneration Committee (noting the discretion available to it under Article 37.3) within 21 days of service of the Compulsory Transfer Notice or such other notice referred to in Article 37.4 (or such longer period as the Remuneration Committee and the relevant transferor (both acting reasonably and without delay) may determine); or (b) failing any agreement under (a), such price as certified in writing by the Valuer (which shall act as an expert and not as an arbitrator) as being in its opinion the fair value of each relevant share as between a willing seller and a willing buyer provided that the Valuer, in determining the fair value of any such share shall:

- 39.1.1. determine the sum in cash which a willing bona fide third party buyer would offer to a willing seller as the equity value (not the enterprise value) for the whole of the issued share capital of the Company (assuming full repayment of all Loan Notes, the redemption of all Preference Shares in accordance with these Articles on the assumption that a Redemption Date has arisen immediately prior to the valuation date and full repayment of amounts due by any member of the Group under the Finance Documents and other sums in the nature of borrowings owed by any member of the Group);
- 39.1.2. allocate the resultant figure in accordance with Articles 7.1.2 and 7.3.2 (assuming exercise in full of any share options or other rights to securities and assuming that any shares or other securities available to be allocated pursuant to the Investment Agreement, or which the Company has otherwise promised or agreed to allocate, have been issued); and
- 39.1.3. the Valuer shall take into account (i) in the event of a Fair Price being required for the purposes of Article 38, the impact on the business of the Group as a result of the Leaver arising and (ii) any actual or potential Event of Default;

but so that there shall be no addition or subtraction of any premium or discount arising in relation to (i) the size of the holding the subject of the relevant transfer; or (ii) any restrictions on the transferability of the shares arising only out of the provisions of these Articles or the Investment Agreement.

- 39.2. The Fair Price set by a Valuer shall in the absence of any manifest fraud or error be binding on the transferor, the Company and the members (and every other person who has any interest in the shares which have been so valued) and the costs of the Valuer shall be borne by the Company unless the difference between the Fair Price and the price per share proposed by the Remuneration Committee in terms of the negotiation referred to at Article 39.1(a) is not more than 10% of the Fair Price, in which case the costs of the Value shall be borne equally between the Company and (subject to the Nominee Agreement) the transferor.

CHANGE OF CONTROL

40. Change of Control

- 40.1. Notwithstanding any other provision of these Articles, but save for transfers pursuant to Articles 36.1-36.4, 36.6, 37, 38 (including pursuant to clause 19.1.4 of the Investment Agreement), 42 and/or 43 (including the Relevant Sale referred to therein) and/or any change of voting and other rights resulting from the operation of Articles 7.4 and/or 7.5 (other than when an Exit in respect of which this Article 40 would otherwise have to be complied with is agreed upon the exercise of the rights set out in Article 7.4.1 or 7.4.4) (in which cases the following provisions of this Article 40 shall not apply), (A) no sale or transfer of, or transfer of any interest in, any shares conferring a right to vote at general meetings of the Company to any person whomsoever (other than any holder of A Shares), which would result, if made and, if appropriate, registered, in a person (together with persons acting in concert therewith) whether or not then a member of the Company obtaining or increasing a Controlling Interest in the Company, shall be made or registered and (B) no right to subscribe for any shares which would result, when such shares are issued, in a person (other than any holder of A Shares) obtaining or increasing a Controlling Interest in the Company shall be exercised (save that the issues and allotments of shares referred to in Article 8.11 shall not of themselves require any such subscriber thereof to comply with the following provisions of this Article 40) unless:
- 40.1.1. prior to such transfer being completed a General Offer is made to all members by the person or persons proposing to acquire the Controlling Interest to purchase all the shares in issue and all the unissued shares for which any person shall then be entitled to subscribe; and
 - 40.1.2. the relevant offer has received Investor Director Consent.
- 40.2. Any General Offer shall conform to the general principles of the Code (so far as such general principles are relevant to any General Offer and subject as provided in these Articles) and shall attribute to Preference Shares the value determined in accordance with Article 7.3.2 and to Equity Shares an equal value to each class of Equity Share (being a value in respect of each class of Equity Share not less than the highest value paid or agreed to be paid for A Shares by the proposed acquiror(s) of the Controlling Interest in the six months preceding the date of the General Offer).

- 40.3. It shall be a term of a General Offer and of any agreement to acquire any shares pursuant thereto that a Controlling Interest is only obtained or increased in consequence of such General Offer or agreement if such General Offer is accepted in respect of a number of shares which would result in the offeror holding a Controlling Interest. Any General Offer shall be made in writing (stipulated to be open for acceptance for at least 14 days) to all shareholders and shall include an undertaking by the offeror that neither he nor any person acting in concert with him has within the six months immediately preceding or will within the six months immediately succeeding the making of the General Offer entered into or will enter into more favourable terms with any member for the purchase of Equity Shares. Such a General Offer shall be accepted or rejected in writing within the time period reasonably stipulated and shall be deemed to have been rejected by a member if he does not respond within such time period.

TAG-ALONG

41. Tag-Along

- 41.1. In the event of a sale of not less than the majority of the A Shares to any person whatsoever (the "Buyer") (other than where such transfer is being made pursuant to Articles 36 (excluding Article 36.5) or is a Relevant Sale (pursuant to Article 43.1) in respect of which Compulsory Acquisition Notices have or will be served in accordance with Article 43.1), the Company shall forthwith notify all members accordingly and any member who did not or will not receive a Compulsory Acquisition Notice under Article 43 may by written notice to the Company served within 60 days of such notification require the Company as agent for such member to serve a notice (in this Article a "Compulsory Purchase Notice") on the Buyer requiring it to buy such member's shares at the consideration applicable in respect of Compulsory Purchase Notices arising by reason of a Relevant Sale pursuant to Article 43.1, the price per share that was or would be payable under the Compulsory Acquisition Notice. The Company shall serve the Compulsory Purchase Notice forthwith upon receipt of any such written notice by a member. It shall not be necessary for any Seller (as defined in Article 43) or the Buyer to comply with this Article 41 before the operation of any provision of Article 43. If any Compulsory Acquisition Notice is served in accordance with Article 43 after any Compulsory Purchase Notice has been served or during the 60 day period referred to above, this Article 41 shall cease to apply and the Compulsory Acquisition Notice and Article 43 shall apply in place of this Article 41 unless otherwise agreed by the Buyer.
- 41.2. The Buyer shall complete the purchase of all shares in respect of which a Compulsory Purchase Notice has been given no later than 21 days from the date of the serving of such Compulsory Purchase Notice on it. The consideration shall be payable in full without any set off. The Directors shall not register any transfer to the Buyer, and the Buyer shall not be entitled to exercise or direct the exercise of any rights in respect of any shares to be transferred to the Buyer, until in each case the Buyer has fulfilled all his obligations pursuant to this Article. If and for so long as the Buyer fails to comply with the provisions of this Article, the shares held by the Buyer

(including any shares held by the Buyer prior to the operation of this Article) shall confer on the Buyer no right to receive notice of, attend or vote at any general meeting of the Company or at any separate general meeting of the holders of the shares of that class until the obligations of the Buyer under this Article have been complied with and such shares shall confer no right to receive notice of, attend or vote at any meeting of the Company unless and until the Buyer has complied with such obligations under this Article.

Tag-along for Preference Shares

- 41.3. In the event of a sale of A Loan Notes referred to in Article 43.7(c) (other than where such transfer is being made pursuant to clause 9 of the A Loan Note Instrument (as defined in the Investment Agreement)), the Company shall forthwith notify all holders of Preference Shares accordingly and any such holder who has not received a Drag Instruction within the time limit set out in Article 43.7 may by written notice to the Company served within 60 days of such notification require the Company as agent for such member to serve a notice (in this Article a "**Compulsory Purchase Instruction**") on the buyer requiring it to buy such member's Preference Shares at the price per Preference Share that was or would be payable under Article 43.7. The Company shall serve the Compulsory Purchase Instruction forthwith upon receipt of any such written notice by a member.
- 41.4. The buyer shall complete the purchase of all Preference Shares in respect of which a Compulsory Purchase Instruction has been given and no later than 21 days from the date of the serving of such Compulsory Purchase Instruction on it. The consideration shall be payable in full without any set off.

CO-SALE

42. Co-Sale

For Equity Shares:

- 42.1. If the holder(s) of A Shares (the "**Investor Seller**") wish to transfer (the "**Proposed Sale**") A Shares representing less than the majority of the total number of issued A Shares (the "**Sellers' Shares**") to any person (other than where the transfer is being made pursuant to Article 36) (the "**Buyer**"), then the Investor Seller shall give written notice to all members (the "**Other Shareholders**") of such Proposed Sale at least 10 Business Days prior to the proposed date of completion thereof. Such notice shall set out, to the extent not described in any accompanying documents, the identity of the Buyer, the sale price and other terms and conditions of payment, the proposed date of sale and the number of A Shares to be acquired by the Buyer.
- 42.2. The Proposed Sale may not be completed unless the Buyer has unconditionally offered to buy the Relevant Proportion of Equity Shares (rounded up or down (as the case maybe) to the nearest whole number of Equity Shares) held by each of the Other Shareholders (the "**Co-Sale Shares**"). Such offer shall remain open for acceptance for not less than 10 Business Days. If any Other Shareholder holds more than one class of Equity Shares

then his Co-Sale Shares will comprise the Relevant Proportion of each class of Equity Shares.

42.3. The terms and conditions of any offer by a Buyer to the Other Shareholders for the Co-Sale Shares shall provide that:

42.3.1. the same terms and conditions as apply to the Proposed Sale shall apply;

42.3.2. the consideration payable for each Co-Sale Share shall be a consideration per share (including any contingent or deferred consideration)(insofar as it can be ascertained at the date of the offer) which is not less than the price, and shall be in the same form, payable (expressed as a price per Share) to the Investor Seller in respect of the Sellers' Shares by the Buyer;

42.3.3. in determining the consideration payable to the Investor Seller and the Other Shareholders for their Equity Shares for the purposes of this Article 42, any option, warrant or other right or opportunity offered to subscribe for or acquire any share, debt instrument or other security in the capital of the Buyer or any group undertaking of the Buyer ("Buyer Investment") which is consideration offered for each Sellers' Share shall be reflected in the consideration so payable to the Investor Seller and the Other Shareholders, but for the avoidance of doubt if acting in good faith and without any intention to manipulate or reduce the consideration so payable and if in the opinion of the Board (acting reasonably and without delay) any such Buyer Investment is not part of such consideration offered and is acquired independently of the Proposed Sale, the Buyer Investment shall be disregarded in determining the consideration so payable to the Investor and the Other Shareholders; and

42.3.4. any reasonable and properly incurred costs, fees and expenses incurred in relation to the Proposed Sale or the offer to Other Shareholders which are not borne by the Company or the Buyer shall be borne by the Investor Seller and the Other Shareholders who accept the offer, pro rata to the aggregate number of shares sold by each of them to the Buyer pursuant to this Article 42 and each such member shall be paid his consideration therefor after deduction of his proportion of such costs.

For Preference Shares:

42.4. If a sale of A Loan Notes representing less than the majority of the principal value of the outstanding A Loan Notes (other than pursuant to clause 9 of the A Loan Note Instrument (as defined in the Investment Agreement)) is proposed (the "Loan Note Sale"), then the holders of the majority of the A Shares shall give written notice to all holders of Preference Shares (the "Relevant Preference Shareholders") of such proposed sale at least 10 Business Days prior to the proposed date of completion thereof. Such notice shall set out, to the extent not described in any accompanying documents, the

identity of the buyer, the proposed date of the Loan Note Sale, its proposed sale price and terms and conditions of payment and the amount of A Loan Notes to be acquired by the buyer.

- 42.5. The Loan Note Sale may not be completed unless the buyer has unconditionally offered to buy the Specified Proportion of Preference Shares (rounded up or down (as the case maybe) to the nearest whole number of Preference Shares) held by each of the Relevant Preference Shareholders (the "Co-Sale Preference Shares"). Such offer shall remain open for acceptance for not less than 10 Business Days. In these Articles, "Specified Proportion" means X% of each Relevant Preference Shareholder's total holding of Preference Shares immediately prior to the date of the notice referred to in Article 42.4 where X% shall be the percentage of the total principal value of outstanding A Loan Notes represented by the amount of A Loan Notes to be acquired by the buyer.
- 42.6. The terms and conditions of any offer by a Buyer to the Relevant Preference Shareholders for the Co-Sale Preference Shares shall provide that:
 - 42.6.1. the same terms and conditions as apply to the Loan Note Sale shall apply;
 - 42.6.2. the consideration payable for each Co-Sale Preference Share shall be a consideration per share (including any contingent or deferred consideration)(insofar as it can be ascertained at the date of the offer) which is not less than the amount which would be payable in respect of that Co-Sale Preference Shares if there had been a redemption of such share in accordance with Articles 7.3.6-7.3.10 on the date of the aforesaid offer to Relevant Preference Shareholders (in which case upon completion of the purchase of such shares in accordance with this Article 42 no redemption of such shares shall be permitted under these Articles);
 - 42.6.3. in determining the consideration payable in respect of the Loan Note Sale, any option, warrant or other right or opportunity offered to subscribe for or acquire any share, debt instrument or other security in the capital of the Buyer or any group undertaking of the Buyer ("Buyer Investment") which is consideration offered for A Loan Notes in terms of the Loan Note Sale shall be reflected in the consideration so payable to the holders of Co-Sale Preference Shares, but for the avoidance of doubt if acting in good faith and without any intention to manipulate or reduce the consideration so payable and if in the opinion of the Board (acting reasonably and without delay) any such Buyer Investment is not part of such consideration offered and is acquired independently of the Loan Note Sale, the Buyer Investment shall be disregarded in determining the consideration so payable to the holders of A Loan Notes and the holders of Co-Sale Preference Shares; and
 - 42.6.4. any reasonable and properly incurred costs, fees and expenses incurred in relation to the Loan Note Sale or the offer to Relevant

Preference Shareholders which are not borne by the Company or the buyer shall be borne by the relevant holders of A Loan Notes which are to be sold (and any other Loan Notes which are to be sold in conjunction with the Loan Note Sale) and the Relevant Preference Shareholders who accept the offer, pro rata to the aggregate consideration to be paid to each of them by the buyer and each such Relevant Preference Shareholder shall be paid his consideration therefor after deduction of his proportion of such costs.

DRAG-ALONG

43. Investor Drag-Along

- 43.1. The holders of the majority of the A Shares (in this Article, the "**Seller**" or "**Sellers**") may agree, without having to comply with any other provisions of these Articles (except Articles 41.1 and 41.2 (unless the following provisions of this Article 43 (other than Articles 43.7-43.11) are to be applied)), to sell or transfer (the "**Relevant Sale**") not less than the majority of the A Shares to any person whatsoever (together with persons acting in concert therewith) (in this Article, the "**Buyer**"). A Relevant Sale shall only be a Relevant Sale for the purposes of this Article 43 if: (i) it is a bona fide transaction on arm's length terms to an unconnected Buyer and (ii) there will be a sale or transfer of the majority of the A Loan Notes (as defined in the Investment Agreement) to the Buyer or any person nominated by the Buyer if such A Loan Notes are not to be redeemed or repaid. If such Relevant Sale becomes unconditional in all respects (other than any condition in respect of the operation of this Article 43 (whether or not including or excluding Articles 43.7-43.11)), the Buyer may by written notice to the Company served within 60 days of such Relevant Sale agreement, require the Company, as agent for the Buyer, to serve notices (in this Article, each a "**Compulsory Acquisition Notice**") on some or all of the members specified by the Buyer being members who have not participated in such Relevant Sale (the "**Remainder Shareholders**") requiring them to sell the Relevant Proportion of their shares (other than Preference Shares) to the Buyer or a person or entity nominated by the Buyer at a consideration per share equal to the Compulsory Acquisition Price as defined in Article 43.6. The Company shall serve the Compulsory Acquisition Notices forthwith upon being required to do so and thereafter the Remainder Shareholders shall not be entitled to transfer their shares to anyone except the Buyer or a person identified by the Buyer. Each Compulsory Acquisition Notice shall specify the same date (being not less than seven or more than 21 days after the date of the Compulsory Acquisition Notice) for the completion of the relevant transfer of shares to the Buyer (the "**Proposed Compulsory Acquisition Completion Date**"). The "**Compulsory Acquisition Completion Date**" shall be the date on which the Buyer completes the purchase of the shares from the Remainder Shareholders (being a date on or after the Proposed Compulsory Acquisition Completion Date). If any Remainder Shareholder holds more than one class of shares (other than Preference Shares) then the Compulsory Acquisition Notice will comprise the Relevant Proportion of each such class of shares.

- 43.2. The Buyer shall be ready and able to complete the purchase of all shares in respect of which a Compulsory Acquisition Notice has been given on the Proposed Compulsory Acquisition Completion Date. Any Relevant Sale or any service or transfer pursuant to a Compulsory Acquisition Notice shall not require compliance with Article 40, 41 or 42.
- 43.3. If in any case a Remainder Shareholder shall not on or before the Compulsory Acquisition Completion Date have transferred his shares to the Buyer or a person identified by the Buyer against payment of the price therefor:
- 43.3.1. the Sellers shall authorise any Director or other person to execute and deliver on his behalf any necessary transfer in favour of the Buyer or the person identified by the Buyer;
- 43.3.2. the Company shall receive the consideration in respect of such shares; and
- 43.3.3. the Company shall (subject to the transfer being duly stamped to the extent applicable) cause the name of the Buyer (or the person identified by the Buyer) to be entered into the Register of Members as the holder of the relevant shares.

The Company shall hold the consideration in trust for each such Remainder Shareholder but shall not be bound to earn or pay interest thereon. The issue of a receipt by the Company for the consideration shall be a good receipt for the price for the relevant shares. The Company shall apply the consideration received by it in payment to each such Remainder Shareholder against delivery by that Remainder Shareholder of the certificate in respect of the shares or an indemnity in respect of the same in form and substance acceptable to the Company. After the name of the Buyer or the person identified by the Buyer has been entered in the Register of Members in purported exercise of the aforesaid powers the validity of the proceedings shall not be questioned by any person.

- 43.4. For the avoidance of doubt, nothing in these Articles shall prevent the issue of a new Compulsory Acquisition Notice immediately prior to or following the lapse or withdrawal of an existing Compulsory Acquisition Notice in which case such newly served notice shall supersede and revoke any earlier such notice, notwithstanding that the relevant acceptance and purchase period as may be designated in the original Compulsory Acquisition Notice may not have expired.
- 43.5. Where any person has a right to subscribe for shares prior to the transfer to the Buyer which would result in such person becoming a member of the Company or where a member has the right to subscribe for additional shares then the Buyer may serve a Compulsory Acquisition Notice on him (either at the same time as all other Compulsory Acquisition Notices are served or otherwise) notwithstanding that such person may not, at the time of service, be the holder of any shares and, in such a case, the Compulsory Acquisition Notice shall be in respect of any shares which the relevant person shall obtain upon the exercise by them of their subscription rights.

43.6. The "Compulsory Acquisition Price" for the purposes of this Article 43 shall be:

43.6.1. Value per share – calculated as follows:

- (a) determine the total equity value (not enterprise value) for the whole of the issued share capital of the Company using the value per share agreed in terms of the Relevant Sale, then move to paragraph (b);
- (b) allocate the resulting figure from paragraph (a) in accordance with Articles 7.1.2 and 7.3.2 to work out the amount to be allocated to each Remainder Shareholder in respect of the shares the subject of any Compulsory Acquisition Notice, then move to paragraph (c);
- (c) if the Buyer or any person or entity nominated to do so on its behalf agrees to pay costs associated with the Relevant Sale and the purchase of shares held by the Remainder Shareholders, those costs shall be deducted from the final consideration payable to the sellers of shares and in so doing the costs shall be allocated across the Remainder Shareholders and Sellers who are selling shares to the Buyer or person or entity nominated by the Buyer pro rata by reference to the proportion of the total number of shares sold represented by the number of such shares sold by each of them.

43.6.2. **Form of consideration** - a consideration per share (including any contingent or deferred consideration) (in so far as it can be ascertained at the date of the Compulsory Acquisition Notice) which is in the same form as the consideration payable to the Sellers in respect of their A Shares unless the Buyer or the Sellers propose different forms of consideration which are approved by Majority Manager Equity Consent (as defined in the Investment Agreement).

For the avoidance of doubt, in determining the Compulsory Acquisition Price, any option, warrant or other right or opportunity offered to subscribe for or acquire any share, debt instrument or other security in the capital of the Buyer or any group undertaking of the Buyer ("Buyer Investment") which is consideration offered for the Seller's A Shares shall be reflected in the Compulsory Acquisition Price, but for the avoidance of doubt if acting in good faith and without any intention to manipulate or reduce the consideration so payable and if so agreed by the Board acting reasonably and without delay that any such Buyer Investment is not part of such consideration offered and is acquired independently of the Relevant Sale, the Buyer Investment shall be disregarded in determining the Compulsory Acquisition Price.

Preference Share Drag-along

- 43.7. If (a) clause 23 of the Investment Agreement applies; or (b) there is a Loan Note Repayment Date (other than in circumstances in which clause 23 of the Investment Agreement applies); or (c) there is a sale of A Loan Notes representing not less than the majority of the principal value of the outstanding A Loan Notes which is a bona fide transaction on arm's length terms to an unconnected buyer; or (d) there is a Drag Sale or a Share Sale (in either case, other than in circumstances in which clause 23 of the Investment Agreement applies), the holders of the majority of the A Shares may be written notice (the "**Preference Share Drag Notice**") to the Company served within 60 days of any such event require the Company, as agent, to serve notices (the "**Drag Instruction**") on some or all of the holders of Preference Shares specified in the Preference Share Drag Notice requiring them to sell all (but not some only) of their Preference Shares (or in the case of (b) above, the Relevant Preference Shares) to the person or entity stated in the Preference Share Drag Notice (the "**Buyer**") at a cash consideration (unless the Buyer or the holders of the majority of the A Shares propose different forms of consideration which are approved by Majority Manager Noteholder Consent (as defined in the Investment Agreement)) equal to:
- 43.7.1. in the case of (a) above, £1 in total for all Preference Shares referred to in the Drag Instruction (on the basis that the realisation value of the Preference Shares will be determined by and satisfied in accordance with clause 23 of the Investment Agreement);
 - 43.7.2. in the case of (b) and (c) above, the amount which would be payable in respect of the Preference Shares or Relevant Preference Shares (as the case may be) referred to in the Drag Instruction if there had been a redemption of such shares in accordance with Articles 7.3.6-7.3.10 on the date of service of the Drag Instruction (in which case upon completion of the purchase of such shares in accordance with this Article 43.7-43.11 no redemption of such shares shall be permitted under these Articles); and
 - 43.7.3. in the case of (d) above, the amount which would be payable in respect of the Preference Shares referred to in the Drag Instruction if the Preference Shares had been sold and Article 7.3.3 applied on the date of service of the Draft Instruction (in which case upon completion of the purchase of such shares in accordance with this Article 43.7-43.11 no redemption of such shares shall be permitted under these Articles and no payments will be due to in respect of the sold Preference Shares under Article 7.3.3).
- 43.8. The Company shall serve the Drag Instructions forthwith upon being required to do so and thereafter the holders of Preference Shares the subject thereof shall not be entitled to transfer their Preference Shares to anyone except the Buyer or a person identified by the Buyer. Each Drag Instruction shall specify the same date (being not less than seven nor more than 21 days after the date of the Preference Share Drag Notice) for the completion of the relevant transfer of shares to the Buyer (the "**Proposed Drag Completion Date**"). The "**Drag Completion Date**" shall be the date on which the Buyer

completes the purchase of the shares with the relevant holders of Preference Shares (being a date on or after the Proposed Drag Completion Date).

- 43.9. The Buyer shall be ready and able to complete the purchase of all Preference Shares in respect of which a Drag Instruction has been given on the Proposed Drag Completion Date. Article 40 shall not apply in respect of any transfer pursuant to a Drag Instruction.
- 43.10. If in any case a holder of Preference Shares the subject of a Drag Instruction shall not on or before the Drag Completion Date have transferred his relevant Preference Shares to the Buyer or a person identified by the Buyer against payment of the price therefor:
- 43.10.1. the holders of the majority of the A Shares shall authorise any Director or other person to execute and deliver on his behalf any necessary transfer in favour of the Buyer or the person identified by the Buyer;
- 43.10.2. the Company shall receive the consideration in respect of such shares; and
- 43.10.3. the Company shall (subject to the transfer being duly stamped to the extent applicable) cause the name of the Buyer (or the person identified by the Buyer) to be entered into the Register of Members as the holder of the relevant shares.

The Company shall hold the consideration in trust for each such holder of Preference Shares but shall not be bound to earn or pay interest thereon. The issue of a receipt by the Company for the consideration shall be a good receipt for the price for the relevant shares. The Company shall apply the consideration received by it in payment to each such holder of Preference Shares against delivery by that holder of the certificate in respect of the relevant Preference Shares or an indemnity in respect of the same in form and substance acceptable to the Company. After the name of the Buyer or the person identified by the Buyer has been entered in the Register of Members in purported exercise of the aforesaid powers the validity of the proceedings shall not be questioned by any person.

- 43.11. For the avoidance of doubt, nothing in these Articles shall prevent the issue of a new Preference Share Drag Notice or Drag Instruction immediately prior to or following the lapse or withdrawal of an such existing notice or instruction in which case such newly served notice shall supersede and revoke any earlier such notice, notwithstanding that the relevant acceptance and purchase period as may be designated in the original notice or instruction may not have expired.
- 43.12. It is agreed that the sale and purchase of any shares (other than A Shares) pursuant to the foregoing provisions of this Article 43 or Articles 41 or 42 shall be required to and deemed to take place on the basis that the transferor gives the transferee full title guarantee and all assurances that the transferee or any holder of A Shares may reasonably require regarding the termination of the Nominee Agreement (if applicable) in respect of any such shares and any Loan Notes held by or for the benefit of any seller of such shares.

INVESTOR DIRECTOR

44. Investor Director/Chairman

- 44.1. Without prejudice to any additional rights arising under Article 7.4.4, the holders of the majority of the A Shares may, by notice in writing addressed to the Company signed by or on behalf of each of them and delivered to the Office, appoint (i) Investor Directors as Directors of the Company provided there are no more than two of the Investor Directors so appointed from time to time and/or (ii) any person as a Director to be the chairman of the board of directors of each or any member of the Group and/or (iii) any person to be an Observer provided there is no more than one Observer so appointed from time to time.
- 44.2. An Observer shall have the right to attend all meetings of the Directors and of any committee of the Directors and to receive such other information as a Director would be entitled to receive at the same time as such information is provided to Directors and shall, as regards confidentiality, have the same obligations to the Company as if he were a Director. An Observer shall be entitled to attend and speak at any such meetings of the Directors but shall not, for the avoidance of doubt, be entitled to vote.
- 44.3. Each Investor Director and/or Observer shall be entitled to report back to the members appointing him on the affairs of the Company and members of its Group on a confidential basis and to disclose to such members on a confidential basis such information as he shall reasonably consider appropriate including, for the avoidance of doubt, all papers distributed to the Directors.
- 44.4. Any person appointed as a Director or an Observer pursuant to the terms of this Article 44 may be removed and another person appointed in his place by notice in writing addressed to the Company signed by the holders of the majority of the A Shares from time to time in issue.

45. Conflicts of Interest

- 45.1. The conflict of interest provisions contained in the 2006 Act in particular section 173(2)(b) should be read in the light of the following Articles dealing with conflicts of interest.
- 45.2. If a situation arises in which a Director (the "Conflicted Director") has, or can have, a direct or indirect interest that conflicts, or possibly may conflict, with the interests of the Company (including without limitation, in relation to the exploitation of any property, information or opportunity, whether or not the Company could take advantage of it) (a "Situation") the following provisions shall apply:
- 45.2.1. the Directors (other than the Conflicted Director and any other Director with a similar interest who shall not be counted in the quorum at the meeting and shall not vote on the resolution); or

45.2.2. the members (by ordinary resolution or by notice in writing given to the Company by the holders of the majority of Voting Rights),

may resolve to authorise such Situation and the continuing performance by the Conflicted Director of his duties and confirm that the existence of such Situation shall not give rise to a breach of the duty of the Conflicted Director pursuant to section 175 of the 2006 Act (or as such section may be amended or restated or re-numbered from time to time). Any such authorisation may be subject to such conditions as the Directors or members (as applicable) may consider necessary or desirable.

- 45.3. Any proposed authorisation under Article 45.2 may only be given in respect of a matter which constitutes a Situation in which a Director who is not an Investor Director has, or can have a direct or indirect interest that conflicts, or possibly may conflict, with the interests of the Company, if an Investor Director has given his consent to such authorisation.
- 45.4. In the execution of his duty to promote the success of the Company it is acknowledged that any Investor Director shall be entitled to have regard to and take account of the interests of the person or party or entity who has appointed him (the "**Appointer**") and in doing so such Investor Director shall not have infringed their duty to exercise independent judgement in accordance with section 173 of the 2006 Act (or as such section may be amended or restated or re-numbered from time to time).
- 45.5. Notwithstanding Article 45.2, the existence of the following Situations relating to any Investor Director which do or may give rise to a conflict arising as a result of any Investor Director's involvement with and relationship with his Appointer and the investment strategy and operations of the Appointer, shall be hereby authorised, without further approval being required by the Directors and/or the members and consequently shall not give rise to a breach of duty to avoid conflicts of interest:
- (a) if any Investor Director is a shareholder in and/or member and/or partner and/or employee of the Appointer or if any Investor Director has any economic interest in an investment fund in relation to which the Appointer forms part of the relevant fund structure;
 - (b) if any Investor Director has an advisory relationship with a competitor of any member of the Group;
 - (c) if the Appointer acquires a competitor of or a supplier to the Company or any member of the Group, or a material interest therein;
 - (d) if the Appointer or any person connected with the Appointer wishes to take up an opportunity that had been offered to, but declined by the Group;
 - (e) if any Investor Director is appointed by the Appointer or any person connected with the Appointer or is otherwise appointed as a Director of any other company outside the Group, including in a competitor to or supplier of the Group;

- (f) if the Group is considering a refinancing proposed by or supported by the Appointer;
- (g) if the Appointer wishes to exit its investment in the Group by way of a Share Sale or Listing or a sale of assets by the Group or otherwise;
- (h) if an Investor Director accepts a benefit from a third party conferred by reason of his being a Director or his doing (or not doing) anything as a Director, provided such benefit falls within section 176(4) of the 2006 Act (or as such section may be amended or restated or renumbered from time to time); and
- (i) if the Appointer consents or withholds consent or gives any direction pursuant to the Investment Agreement and/or these Articles,

and the Investor Directors shall be entitled to attend, be counted in the quorum and vote at any meeting of the Directors notwithstanding any such conflict or potential conflict.

- 45.6. Where any Investor Director obtains confidential information (other than through his position as a Director of the Company) that is confidential to a third party, he will not be obliged to disclose it to the Company or to use it in relation to the Company's affairs in circumstances where to do so would amount to a breach of that confidence.

46. Purchase of own shares

- 46.1. Subject to the 2006 Act but without prejudice to any other provision of these Articles, the Company may purchase its own shares in accordance with Chapter 4 of Part 18 of the 2006 Act, including (without limitation) out of capital up to any amount in a financial year not exceeding the lower of:

- (a) £15,000; and
- (b) the nominal value of 5% of the Company's fully paid share capital at the beginning of each financial year of the Company.

SCHEDULE PART 1

1. In the Articles to which this forms a schedule the following words and expressions shall, unless the context otherwise requires, bear the following meanings:

"acting in concert" has the meaning set out in the Code;

"A Loan Notes" has the meaning set out in the Investment Agreement;

"A Shares" means A shares of £0.00001 each in the capital of the Company and having the rights and restrictions ascribed to such shares as set out in these Articles;

"A Shareholder Consent" means the written consent of holders of A Shares holding, in aggregate, the majority of the A Shares in issue;

"Auditors" means the auditors of the Company from time to time;

"B Loan Note Transfer Agreement" has the meaning set out in the Investment Agreement;

"B1 Shares" means B1 ordinary shares of £0.00001 each in the capital of the Company and having the rights and restrictions ascribed to such shares as set out in these Articles;

"B2 Shares" means B2 ordinary shares of £0.00001 each in the capital of the Company and having the rights and restrictions ascribed to such shares as set out in these Articles;

"Bad Leaver" means any Leaver other than a Good Leaver or a Very Bad Leaver or a Leaver in respect of which it has been determined pursuant to Article 37.3 that a Very Bad Leaver shall be deemed a Bad Leaver;

"Board" means the board of Directors of the Company from time to time (acting by a majority);

"C1 Shares" means C1 ordinary shares of £0.00001 each in the capital of the Company and having the rights and restrictions ascribed to such shares as set out in these Articles;

"C2 Shares" means C2 ordinary shares of £0.00001 each in the capital of the Company and having the rights and restrictions ascribed to such shares as set out in these Articles;

"Code" means the City Code on Takeovers and Mergers as published by The Panel on Takeover and Mergers from time to time;

"Compulsory Purchase Interest" means the majority of the Equity Shares (to include the majority of the A Shares);

"Controlling Interest" means the majority of the Equity Shares (to include the majority of the A Shares);

"D Shares" means D ordinary shares of £1.00 each in the capital of the Company and having the rights and restrictions ascribed to such shares as set out in these Articles;

"Deferred Shares" means deferred shares of £0.000005 each in the capital of the Company and having the rights and restrictions ascribed to such shares as set out in these Articles;

"Directors" means the directors of the Company (or, if the context so requires, any member of the Group) from time to time and **"Director"** means any one of them;

"Drag Sale" means a Relevant Sale in respect of which the operation of Article 43.1-43.6 has taken place or will take place;

"Dunedin Advised Member" means a member who is managed or advised by or is nominee of a person or entity which is managed or advised by Dunedin or a member of the Dunedin Group (as defined in Article 36.3);

"Dunedin" means Dunedin LLP (registered no. SO362262) a limited liability partnership incorporated in Scotland and having its registered office at Saltire Court, 20 Castle Terrace, Edinburgh EH1 2EN;

"eligible member" has the meaning set out in Section 289(1) of the 2006 Act;

"Equity Shares" means the A Shares, B1 Shares, B2 Shares, C1 Shares, C2 Shares, D Shares and the F Shares, taken together as one class;

"Event of Default" means any of the following:

- (i) if any issuer of any Loan Note has failed to redeem any of the Loan Notes on the due date for redemption and/or pay interest within five Business Days of the due date for payment in accordance with any of the Loan Note Instruments (for whatever reason including any restriction imposed by any intercreditor or similar arrangement); or
- (ii) if the borrower is in breach of any of the financial covenants under any of the Finance Documents; or
- (iii) if any member of the Group is in the reasonable opinion of the holders of the majority of the A Shares (acting in good faith) likely to fail or breach (as appropriate) at any time during the following 12 months (based on the most recent monthly information provided pursuant to clause 10 of the Investment Agreement) any of the financial covenants as set out in any of the Finance Documents; or
- (iv) if there is a material breach of any of the provisions of these Articles or the Investment Agreement (other than the warranties in paragraphs 3, 4 and 5 of Schedule Part 9 of the Investment Agreement) or the Nominee Agreement or the B Loan Note Transfer Agreement by any member of the Group or any member or any Manager (or any of them);

"**F Shares**" means F ordinary shares of £0.00001 each in the capital of the Company and having the rights and restrictions ascribed to such shares as set out in these Articles;

"**Fair Price**" means the price per share determined in accordance with Article 39;

"**Family Settlement**" means any trust or trusts under which no immediate beneficial interest in the shares in question is, for the time being, vested in any person other than the member concerned and/or his Privileged Relations;

"**Finance Documents**" has the meaning set out in the Investment Agreement;

"**Financial Institution**" means any investment fund, collective investment scheme, limited partnership, investment trust, investment company, any institution which would be a bank as defined for the purposes of section 878 of the Income Tax Act 2007 or any member of the British Venture Capital Association;

"**General Offer**" means an offer as defined in the Code;

"**Good Leaver**" means a Leaver where the cessation of employment with any member of the Group or, in the case of a Leaver who provides consultancy services to any member of the Group where the cessation of provision of consultancy services or, in the case of a Leaver who is a Director but not an employee, the cessation of directorship with any member of the Group is as a result of any of the following circumstances:

- (a) retirement on or after reaching retirement age in accordance with his terms of employment or the contract in terms of which his consultancy services are provided or early retirement with the consent of the Remuneration Committee;
- (b) redundancy (as defined in section 139(1) of the Employment Rights Act 1996);
- (c) where such cessation is determined by a court or tribunal of competent jurisdiction (from which there is no right of appeal) to be a wrongful dismissal;
- (d) death;
- (e) ill health or permanent mental or physical incapacity, in any case as certified by an independent medical expert appointed by the Company as rendering the departing person permanently incapable of carrying out his role as an employee, consultant and/or director save where such ill health or incapacity has arisen as a result of the abuse of drugs or alcohol; or
- (f) it has determined pursuant to Article 37.3 that a Leaver who would otherwise be a Bad Leaver or a Very Bad Leaver be deemed a Good Leaver;

"Group" has the meaning set out in the Investment Agreement;

"Investment Agreement" means the investment agreement entered into by the Company and others on the Investment Date, and as amended from time to time;

"Investment Date" means 3 February 2016;

"Investment Manager" means Dunedin;

"Investor Director" means any Director appointed and designated an Investor Director pursuant to Article 44 (or if there is no Investor Director at the relevant time, the Observer (if any));

"Investor Director Consent" means the written consent of any Investor Director (excluding Observers), or if there are no Investor Directors (excluding Observers) or the holders of the majority of A Shares so direct from time to time, references to Investor Director Consent shall be deemed to be references to "A Shareholder Consent";

"Leaver" means any of the following to the extent that they have or have ever had (or their Permitted Transferees or the Nominee or any Permitted Transferee of the Nominee have or have ever had) any legal or beneficial interest in any shares:

- (a) any employee, director or consultant (and for the purposes of this definition and related definitions in these Articles a consultant shall include any person employed or engaged by a consultant company which is engaged to provide the services of that person to any member of the Group from time to time (other than an Investor Director) and who serves or is served with notice of termination of his employment and/or directorships with all members of the Group by whom he is employed or of which he is a Director or the company or person which contracts with a member of the Group to provide his services as a consultant serves or is served with notice of termination of the relevant consultancy agreement;
- (b) any employee, director or consultant who ceases to carry out such role (whether or not his contract of employment or the relevant consultancy agreement is validly terminated and/or whether or not such termination is wrongful or unfair or otherwise) or who ceases to be an employee and/or Director of and/or provider of consultancy services to a member of the Group because such member of the Group ceases to be a member of the Group and does not continue (or is not immediately re-employed/re-appointed) as an employee and/or Director of and/or provider of consultancy services to the Company or any such member of the Group;
- (c) any person (other than holders of A Shares) who dies or becomes bankrupt; or

- (d) any person referred to in paragraph (b) of the definition of Very Bad Leaver.

Any reference in these Articles to a Leaver shall include any person who becomes entitled to a Leaver's interest in any shares by transmission following the death or bankruptcy of a Leaver, or any Permitted Transferee of a Leaver or any Permitted Transferee of the Nominee in such capacity;

"Leaver Period" means the period beginning on (and inclusive of) the Termination Date and ending on the date falling eighteen months after the date on which the Leaver ceased to be employed by or a director of, or provide consultancy services to the relevant member of the Group;

"Leaver Shares" means the following shares (whether or not the following shares are registered in the name of the Nominee or any other person) to the extent the Leaver and/or his Permitted Transferees and/or any Permitted Transferees of the Nominee have any legal and/or beneficial ownership therein and/or have any entitlement therein pursuant to the Nominee Agreement:

- (a) if the Leaver is a Good Leaver or Bad Leaver, all C1, C2 and D Shares (but not for the avoidance of doubt B1 or B2 Shares unless such Leaver becomes a Very Bad Leaver); or
- (b) if the Leaver is a Very Bad Leaver, all B1, B2, C1, C2 and D Shares;

"Listing" has the meaning set out in the Investment Agreement;

"Loan Note Instruments" has the meaning set out in the Investment Agreement;

"Loan Notes" has the meaning set out in the Investment Agreement;

"Loan Note Repayment Date" shall mean any date on which the repayment of Loan Notes is notified or proposed in accordance with any Loan Note Instrument (save that if so required by the holders of the majority of the A Shares, Loan Note Repayment Date shall exclude any repayment in connection with a winding-up of the Company or any repayment in connection with which there will be a sale or other realisation of Preference Shares to which Articles 7.3.2-7.3.4 or clause 23 of the Investment Agreement shall apply);

"member" or **"Member"** means a person (whether an individual or a corporation) who is the registered holder of shares;

"Nominee" means Alpha FMC Group Nominees Limited, a company registered in England with number 08936452;

"Nominee Agreement" has the meaning set out in the Investment Agreement;

"Observer" means any person appointed as an observer pursuant to Article 44.1;

"Office" means the registered office of the Company;

"Original Employee Member" means each member holding Equity Shares (other than A Shares) and/or Preference Shares other than a member who became a holder of any such shares by reason of a Permitted Transfer;

"Permitted Transfer" means a transfer of shares pursuant to Article 36;

"Permitted Transferee" means in respect of any person or entity those persons or entities to whom shares or any interest in any share originally held by that person or entity have been transferred in accordance with Article 36 or the Nominee Agreement;

"Preference Share Leaver Date" means the Termination Date in respect of any person who has or has ever had (and/or whose Permitted Transferees and/or the Nominee and/or any Permitted Transferee of the Nominee have or have ever had) any interest in any Preference Shares (whether or not such Preference Shares are held by the Nominee, any Permitted Transferee or any other person) who is a Bad Leaver or a Very Bad Leaver; for the avoidance of doubt the Preference Share Leaver Date shall apply only to the extent of the Preference Shares in respect of which the Bad Leaver or a Very Bad Leaver (and/or his Permitted Transferees or the Nominee (or any Permitted Transferee of the Nominee) on his behalf) holds any legal and/or beneficial interest from time to time;

"Preference Shares" means preference shares of £0.000005 each in the capital of the Company and having the rights and restrictions ascribed to such shares as set out in these Articles;

"Privileged Relation" means in respect of any member (other than a trust) any person over the age of eighteen years who is the spouse or civil partner or any person over the age of eighteen years who is the lineal descendent of the member and for these purposes the step-child or adopted child of any person shall be deemed to that person's lineal descendant;

"Redeemable Deferred Shares" means the non-voting redeemable deferred shares of £[•] in the capital of the Company and having the rights and restrictions ascribed to such shares as set out in these Articles;

"Register of Members" means the register of members kept by the Company pursuant to Section 113 of the 2006 Act;

"Relevant Preference Shares" means X% of the total number of issued Preference Shares immediately prior to the Loan Note Repayment Date (rounded up or down to the nearest whole number of Preference Shares), where X% shall be the percentage of the total principal value of outstanding Loan Notes which are to be repaid on the Loan Note Repayment Date;

"Relevant Proportion" means the proportion of the total number of issued A Shares represented by the Sellers' Shares (as defined in Article 42.1) or by the A Shares agreed to be sold under the Relevant Sale (as defined in Article 43) expressed as a percentage;

"Remuneration Committee" means the remuneration committee of the Directors constituted in accordance with clause 19.1 of the Investment Agreement, or if from time to time there is no Remuneration Committee, the Directors (with Investor Director Consent);

"Restrictive Covenants" means any restrictive covenant set out in the Investment Agreement or any Transaction Document (as defined in the Investment Agreement) or a service agreement and/or consultancy agreement and/or any other terms of appointment by any member of the Group to which a Manager (as defined in the Investment Agreement) is a party or where any such restrictive covenant in respect of non-competition only has expired, in circumstances which would have been a breach of any such non-competition restrictive covenant had it not so expired;

"Share Sale" has the meaning set out in the Investment Agreement;

"shares" means shares in the share capital of the Company;

"Specified Price" means if there is a Deemed Transfer (as defined in Article 37), the price per Leaver Share (or any share referred to in Article 37.6) as determined in accordance with Article 37;

"Termination Date" means:

- (a) in respect of any Leaver (other than any person referred to in paragraph (b) of the definition of Very Bad Leaver) (whether or not such termination or cessation was lawful, wrongful, unfair or otherwise) the date upon which notice of cessation of the contract of employment or appointment as Director of the relevant Leaver terminated or the consultancy agreement was given by any member of the Group or the Leaver (or if there is no such notice date, the date on which the Leaver ceased to be employed by or a Director of or provide consultancy services to the relevant member of the Group); and
- (b) in respect of any person referred to in paragraph (b) of the definition of Very Bad Leaver, the date upon which the breach referred to therein is admitted or determined by a court of competent jurisdiction (from which there is no right of appeal); for the avoidance of doubt there may be more than one Termination Date (and more than one operation of Article 7.3.1, 37 and/or 38) in respect of a Leaver in the event that a Leaver subsequently becomes a Very Bad Leaver in the circumstances set out in the aforesaid paragraph (b) of the definition of Very Bad Leaver;

"Valuer" means the valuer agreed between the transferor and the Remuneration Committee (acting reasonably and without delay) or if such agreement is not achieved within 5 days, at the option of the Company, an independent firm of chartered accountants nominated by the President of the Institute of Chartered Accountants of England and Wales (or his equivalent from time to time)) in each case acting as an expert and not as an arbitrator;

"Very Bad Leaver" means:

- (a) a Leaver who has resigned (other than in circumstances where he is found by a court or tribunal of competent jurisdiction (from which there is no right of appeal) to have been constructively dismissed);
- (b) a person who has or has ever had legal and/or beneficial ownership of any shares and who is in breach of any of the Restrictive Covenants;

"Voting Rights" means the right to receive notice of, attend (in person or by proxy), speak (in person or by proxy) and vote (in person or by proxy) at general meetings of the Company.

- 2. Words and expressions defined in the 2006 Act shall, unless the context otherwise requires, bear the same meanings herein.
- 3. This Schedule Part 1 and Schedule Part 2 shall be deemed to be part of, and shall be construed as one with, the Articles.
- 4. References to any document or agreement or deed in these Articles shall include any such document or agreement or deed as amended, varied, modified, supplemented or restated from time to time.

SCHEDULE PART 2**MATTERS REQUIRING A SHAREHOLDER CONSENT REFERRED TO IN
ARTICLE 7.1.5(a)**

In this Schedule Part 2, defined terms shall have the meaning given to them in the Investment Agreement.

The matters are:

PART A

1. any alteration to the memorandum of association or these Articles or articles of association or other constitutional documents of any member of the Group;
2. the modification, variation or abrogation of the rights attaching to any class of Shares or any securities of any member of the Group;
3. agreement of the terms of an Exit and making any arrangements for any other form of marketing of any form of its share capital (including without limitation listing on any foreign stock exchange);
4. any re-organisation, consolidation, subdivision, conversion or reduction of any member of the Group's share capital;
5. any resolution to liquidate or wind-up any member of the Group;
6. any application to have an administrator appointed to any member of the Group;
7. any purchase or redemption by any member of the Group of its own shares;
8. any alteration to the accounting reference date of any member of the Group;
9. the removal of the auditors of any member of the Group;
10. any application by any member of the Group to the Secretary of State to appoint one or more inspectors to investigate the affairs of any member of the Group; and
11. any passing of any shareholder resolution of Midco.

PART B

Notwithstanding anything contained in this Part B of Schedule Part 2 of these Articles, if the business of the Group is performing materially in line with the Budget and/or Business Plan approved by the Investor Director, specific matters provided for in such Budget or Business Plan with appropriate specific detail, explanation and costing will not require an additional consent in accordance with Article 7.1.5(a).

References in this Part B below to the "Company" will include each Group Company from time to time and reference to amounts will be deemed to be the aggregate for all members of the Group.

Any monetary sum in this Part B of Schedule Part 2 of these Articles, which is in pounds sterling shall, in respect of a member of the Group which operates with a currency not in pounds sterling, be translated into the currency which is applicable to the relevant member of the Group at the closing mid-point spot rate applicable to that sum of pounds sterling currency at close of business in London on the relevant date (or, if such day is not a Business Day, on the Business Day immediately preceding such day) as shown in the Financial Times (London First Edition) published on the next following day or if the Financial Times (London First Edition) is not published on that day the closing middle point spot rate quoted in an equivalent financial newspaper on that day or the next following day on which such newspaper is published.

12. any variation in the issued share capital of the Company or the creation or the granting of any options over or rights to subscribe for any shares or securities in any member of the Group;
13. other than Share transfers expressly permitted by, or approved in accordance with, these Articles, approval of any Share transfer or, other than transfers of Midco B Shares expressly permitted by, or approved in accordance with, the Midco Articles, approval of any Midco B Share transfer;
14. the reduction of the any member of the Group's share capital, share premium account, capital redemption reserve or any other reserve;
15. the redemption of any loan stock or loan notes of any member of the Group other than on a redemption in accordance with the terms of the relevant Loan Note Instrument or the BL Midco Loan Note Instrument;
16. the capitalisation of any undistributed profits (whether or not the same are available for distribution and including profits standing to the credit of the reserve) or any sums standing to the credit of the share premium account or capital redemption reserve fund of any member of the Group;
17. the application by way of capitalisation any sum in or towards paying up any debenture or debenture stock of any member of the Group;
18. re-organising or consolidating or sub-dividing or converting or transferring any of the shares for the time being in the capital of any of any member of the Group's subsidiaries or varying any of the rights attaching to any of the

shares for the time being in the capital of any of the Company's subsidiaries or reducing the capital of any of the Company's subsidiaries;

19. taking any action with a view to commencing winding up, administration or receivership proceedings (or any analogous proceedings in any jurisdiction) against any member of the Group other than in circumstances where not doing so immediately would constitute a breach of director's duties;
20. any disposal of the whole or substantially the whole of the business of the Company or any of the shares in any Group Company;
21. disposing of or approving the transfer of any share in the capital of any of the Company's subsidiaries or altering, increasing or reducing the authorised or issued share capital of any of the Company's subsidiaries;
22. subscribing for or purchasing or acquiring any share or debenture or mortgage or security (or any interest in any of them);
23. the recommendation, declaration, making or payment of any dividend or other distribution to (a) the holders of the Shares other than as expressly permitted under these Articles and (b) the holders of the Midco B Shares other than as expressly permitted under the Midco Articles;
24. the Company incurring any borrowing or other indebtedness in the nature of borrowings other than the Loan Notes or under the Finance Documents;
25. the lending of money (except to employees of the Company in amounts not exceeding £7,500 per employee (up to a maximum aggregate of £50,000 for all employees));
26. the adoption, in relation to each financial period, of the Budget and any material revision to the Budget;
27. any change any member of the Group's accounting policies or principles;
28. the appointment or removal of the auditors to any member of the Group;
29. the adoption or variation, once agreed, of any business plan;
30. the incurring of any capital expenditure commitments in excess of £25,000 which are not provided for in the Budget in respect of that financial period;
31. any acquisition (other than by credit sale, lease, licence or hire purchase) by any member of the Group of any asset or group of assets save as provided for in the Budget for the relevant financial period;
32. the entering into by any member of the Group of any credit sale, lease, licence or hire purchase agreement save as provided for in the Budget for the relevant financial period involving or contemplating in respect of each individual agreement (i) annual payments of £20,000 more; or (ii) total payments of £100,000 or more;

33. any disposal (whether by way of sale, credit sale, lease, licence, hire purchase or otherwise) by any member of the Group of any asset or group of assets save as provided for in the Budget for the relevant financial period;
34. the acquisition or formation of any subsidiary undertaking or the acquisition of shares or other securities in any body corporate;
35. the acquisition of the whole or any part of any business or undertaking;
36. the entry into of any contract or agreement for the acquisition or disposal of freehold or leasehold real property;
37. the entering into or termination of any employment contract, contract of service, consultancy or service agreement in respect of the services of any person where:
 - i. such person is, or is to be, a director of any member of the Group (or a person connected with a director); or
 - ii. the annual benefits (including bonus (which shall include expected annual profit share payment), pension contributions commissions, associated costs, benefits, taxes, duties and perquisites) payable under such contract is or is to be in excess of £150,000 (Index Linked);
38. the alteration of or the giving of any consent, approval or waiver under the terms of any of the contracts or agreements falling within paragraph 37, or any increase or variation in the basis of calculating the remuneration paid by the relevant member of the Group unless such increase or variation in remuneration has been approved by the Remuneration Committee;
39. varying the notice period or the restrictive covenant in any existing service agreement with a Director;
40. the appointment or removal of any director or chairman of any member of the Group;
41. the termination of the position of any of the Managers or the Chairman either as an employee or officer of any member of the Group;
42. the entering into, variation or termination of any contract or arrangement with any shareholder of any member of the Group or Director or any person who is a Connected Person of a shareholder or any member of the Group or Director or entering into any contract or arrangement in which any such person is interested, whether directly or indirectly;
43. the delegation by the directors of any member of the Group of any of their powers to any committee;
44. the establishment by any member of the Group, or variation to the terms of, any pension or life insurance scheme;

45. the establishment by any member of the Group, or variation to the terms of any share option, shadow share option, profit sharing, bonus or incentive scheme;
46. create any scheme to allot or issue shares in any member of the Group to employees or allot or issue to employees any shares in any member of the Group held by any such scheme;
47. the entry into, termination or variation of any contract or arrangement between (1) any member of the Group and (2) a Manager;
48. the giving of notice of any resolution to wind-up any member of the Group, or the filing of any petition for the appointment of an administrator or liquidator, or the making of an invitation to any person to appoint a receiver or an administrative receiver;
49. the creation, extension or variation of any guarantee or indemnity or security by any member of the Group;
50. the variation of any terms of the banking facilities available to the Group, any amendment or variation of any terms under the Acquisition Documents, Loan Notes, or the Finance Documents or waiver or release by any member of the Group of any of its rights under any such documents;
51. the creation, extension or variation of any mortgage, charge or security interest over any asset of any member of the Group;
52. the making of any material change in the nature of the business of any member of the Group;
53. the carrying on, expansion or development of any of the businesses from time to time carried on by any member of the Group otherwise than through a Group Company;
54. the undertaking or entering into of any transaction of any nature whatsoever other than on arm's length and upon normal commercial terms;
55. entering into any contract or arrangement which is outside the ordinary course of business of the Group or which contains any provisions which would result in a change to the terms and conditions of the contract or a termination or ability to terminate the contract on a change of control of the contracting company or any of its direct or indirect parent companies;
56. the commencement or settlement of any litigation or arbitration by the Company (other than debt collection in the ordinary course of business);
57. the entering into by any member of the Group of any partnership or joint venture;
58. entering into any agreement or arrangement with respect to any member of the Group's trade marks, patents or other intellectual property other than in the ordinary course of trading;

59. using the name of the Investors in any context whatsoever or holding itself out as being connected or associated with the Investors in any manner whatsoever save (i) as required by law or by the regulations of a body in accordance with whose instructions the Group is accustomed to act or (ii) in the ordinary and usual course of business and on terms which are not in any way disparaging or negative;
60. making any charitable donations in excess of £20,000 per annum in aggregate, or any political donation;
61. amending or terminating any of the Transaction Documents or any Conflict Contract;
62. giving any consent and/or approval which is required from a member of the Group under any Transaction Document or Conflict Contract;
63. the entering into of any transaction or series of transactions requiring approval under sections 190-194 (inclusive) of the Companies Act 2006 or the approval of any conflict of interest situation in respect of which section 175 of the Companies Act 2006 applies;
64. any member of the Group passing any shareholder resolution in its capacity as a shareholder of another member of the Group;
65. the calling of an Event of Default (as defined therein) pursuant to and in accordance with either B Loan Note Instrument where the A Loan Noteholders have not called an Event of Default pursuant to and in accordance with the A Loan Note Instrument;
66. any repayment of the BL Midco Loan Notes which results in cash having to be paid by the Group in connection with such repayment (on the basis that the repayment of the BL Midco Loan Notes should be set-off by the corresponding loan owed by BL to the Group);
67. any amendment of the content of the ESS Implementation Pack; and
68. entering into any agreement or commitments to do any of the above.